LOAN APPLICATION NUMBER 7808 4/67

LOAN AGREEMENT

This Loan Agreement (the **"Agreement"**) against loan application number as specified above, is executed on the date as specified at last page of this Agreement between MAHINDRA & MAHINDRA FINANCIAL SERVICES LIMITED, a Company incorporated and registered under the Companies Act, 1956 and having its registered office is at Gateway Building, Apollo Bunder, Mumbai - 400001, Website: www.mahindrafinance.com CIN - L65921MH1991PLC059642 (hereinafter called **"the Lender"**) of the First Part AND Borrower, Co-Borrower hereinafter jointly (if the context so admits) called the **"Borrower"** of the Second Part AND **"Guarantor"** of the Third Part. The Guarantor guarantees due performance and observance of all covenants and terms of this Agreement. The Borrower, Co-Borrower and Guarantor are more so fully specified and described at end of this Agreement. The Sanction Letter/Key Fact Statement (KFS) shall be executed by the parties along with execution of this Agreement. (The expression **"The Lender"** shall, where the context so admits mean and include its successors and assigns and the expression **"Borrower"** and the **"Guarantor"** (herein after collectively called as "Borrower") depending on whether an individual, firm or company shall, where the context so admits, mean its/his/her legal heirs, executors and administrators, assigns and successors in interest.

Whereas the Borrower has approached the Lender, seeking financial assistance for purchase of new vehicle/equipment & accessories/used vehicle/used vehicle equipment & accessories (**"Asset"**), more so fully described in Sanction Letter/KFS to this Agreement. The Borrower, has identified the Asset, dealer/seller/registered owner, type, model and make of the Asset and after evaluating its usability, value, make model and relevant documents, requested the Lender for a loan for purchasing the said Asset.

WHEREAS the Lender having considered the request of the Borrower and after evaluating the relevant papers, documents including the credentials of the Borrower has agreed to provide a loan subject to the terms and conditions of this Agreement and such other terms as the Lender deems fit.

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1) The Lender based on the Borrower's request, representations, warranties, covenants and undertakings as contained herein and in the application for loan and other documents executed or tendered by the Borrower in relation to the loan, hereby lends, and the Borrower hereby borrows a loan amount more specifically mentioned in Sanction Letter/KFS and/or Schedule of charges (hereinafter referred as Schedule of charges), on the terms and conditions contained herein, for purchasing the Asset which is more specifically mentioned in Sanction Letter/KFS. Schedule of charges shall be provided to the Borrower by the Lender upon execution of the Agreement and shall also be detailed in the website of the Lender i.e. www.mahindrafinance.com. The terms mentioned in Sanction Letter/KFS and Schedule of charges shall be read together with this Agreement and shall form part and parcel of this Agreement.

2) Borrower hereby agrees, accepts and acknowledges that it is the absolute choice of the Borrower in determining the Asset including the colour, make, model, value and the supplier/seller of the same including the decision to buy the Asset and the Lender has no role whatsoever. Borrower further hereby shall hypothecate the said Asset in favor of the Lender and create necessary records in the invoice of the Asset and in case the Asset is a vehicle/equipment, mark the hypothecation in the registration certificate of the vehicle as well and shall submit necessary documents for recording the creation of hypothecation with all concerned authorities. A copy of the same shall be given to the Lender within 15 working days from the date of the delivery.

3) The obligation of the Lender to make a disbursement under this Agreement shall be subject to the Borrower performing all its obligations under the sanction letter and this Agreement and delivery of all the documents and/or evidence, to the satisfaction of the Lender.

4) Borrower further agrees and covenants to pay the margin money being the difference between the sale consideration of the Asset including any charges on account of insurance, registration etc., and the loan amount, directly to the supplier/seller of the Asset and such Asset shall be always subject to hypothecation in favor of the Lender, on Lender disbursing the loan amount either to the supplier or seller in discharge of the Borrower's obligation to pay the sale consideration to the supplier/seller.

5) Borrower further agrees, confirms, and undertakes that the loan shall be considered as disbursed when the loan amount is paid by Lender, to either a dealer and/or to the seller and/ or the Borrower and/or any other party as requested by the Borrower and approved by Lender, in one or multiple instalments. All such payments made by the Lender shall be considered as a debt due and shall be repaid by the Borrower along with applicable interest on their respective due dates and notwithstanding any delay in the delivery of the Asset or getting the Asset registered or installed. Notwithstanding the same, Borrower shall repay the loan amount without any delay in terms of the repayment structure specified in Sanction Letter/KFS and/or Schedule of charges or any other repayment structure, which shall be issued by the Lender, subsequent to the signing of this Agreement and disbursement of the advance and also ensure that the interest of Lender is fully protected to the satisfaction of the Lender and on demand shall create adequate security.

6) Borrower agrees, accepts and undertakes that the obligation to repay the loan along with interest in Periodical Installments (PI), on the fixed due dates as specified in Sanction Letter/ KFS and/or Schedule of charges, either by auto debit advised to Borrower's bankers, net banking transfers, post-dated cheques, pay orders, by remittance in cash, UPI/QR or any other permissible mode of payment online or at the nearest branch or to the Lenders representative or to the nearest cash collection center, against valid money receipt issued by the Lender, shall be independent of use of the Asset and shall not be subject to any change on account of any failure of Asset, and its utility. Borrower agrees and undertakes to issue and sign mandate/s for repayment of dues and shall ensure availability of sufficient funds in respective bank accounts on the respective due dates to enable clearance of such mandate when presented by Lender and/or its bankers. The borrower shall not stop payment of such mandate and/or close the bank account from where such mandates were issued. If the Borrower is compelled to do so, the Borrower agrees to immediately within 3 working days, send a revised mandate to Lender in the manner prescribed by Lender.

Borrower further agrees that when the payment to the loan account are remitted through payment aggregators/payment gateways or by any third party to the credit of the Borrower's account, all such payments shall be duly authorized by the Borrower and the Borrower shall be solely responsible for the legitimacy of the payment, the source of the payment and shall also hold the Lender indemnified against any claim under any statutory provisions or regulations on account of such third party transfer.

7) Borrower agrees, accepts and acknowledges that time is the essence of the contract and undertakes to pay the instalments on the due dates without fail and on making such payment, Lender shall have the absolute right to appropriate the instalment paid towards any charges, **penal charges**, principal or interest at the discretion of the Lender which shall get reflected in the statement of account and such statement of account shall be deemed to be the final statement of account and the Borrower shall accept the same and further agrees to reimburse the Lender with interest any payment made or cost or expenditure incurred by the Lender on account of the Borrower, which otherwise would have been paid/payable by the Borrower.

Borrower further agrees that in the event of Borrower making any payment towards the loan, whether in part or in full, prior to the specified due date(s), the Lender shall not be liable to pay or compensate the Borrower for any interest, or other financial benefits on the amount prepaid. Such prepayment shall be made at free will of the Borrower and shall be applied towards the principal or outstanding dues as determined by Lender's standard policy/process without any obligation to the Borrower for interest on said prepaid amount.

8) The Borrower agrees to place with the Lender as security Deposit, the sum as mentioned in Sanction Letter / KFS and/or Schedule of charges, on execution of this Agreement and hereby confirms an unconditional and absolute lien on the Lender in respect of the security deposit to the Lender and unconditional right to adjust said security deposit to first set off costs incurred in relation to enforcement of this Agreement and then set off delayed payment charges arising out of late remittance of PI due under this Agreement and finally to set off the installments due in the inverse order of maturity. Notwithstanding anything contained in this Agreement, Lender shall have lien over all the Assets, including fixed deposit (if any) of Borrower in Lender's possession and control and right to set off against any monies due to the Lender from the Borrower and to combine all accounts of Borrower for recovery of Lender's dues.

9)The Borrower further agrees and undertakes to pay to the Lender, without prejudice to the rights of the Lender, on or without a demand made by the Lender, any charges fallen due and also pay **penal charges**, at the rate specified in Sanction Letter / KFS and/or Schedule of charges, for the installments that has remained unpaid beyond the due date of the installment and the **penal charges** shall be calculated from the due date till the actual date of payment, on the amount that has remained outstanding beyond due date of PI. The Borrower acknowledges that any sums payable under this Agreement by way of interest, **penal charges**, or foreclosure charges, are reasonable and represent genuine pre-estimates of the loss likely to be incurred by the Lender in the event of non-payment by the Borrower of such sums when due. The Borrower further acknowledges that the charges (other than interest) specified in / Sanction Letter / KFS and/or Schedule of charges are exclusive of tax, duties, levies as applicable and shall be payable additionally over and above the charges prescribed.

10) In the event of the Lender approaching the Borrower for collecting instalment dues for whatsoever the reason, Lender shall be entitled to debit the account of the Borrower for collection charges as specified in the Sanction Letter / KFS and/or Schedule of charges for every visit made.

Borrower shall not withhold any payments that are due to the Lender, even on account of any error in the computation of the instalment amount or in the computation of the **penal**

charges and agrees that the obligation to pay the instalment is absolute and unconditional, however, should there be any discrepancy in the statement of account, Lender agrees to rectify the same, including refund or adjust the money towards the subsequent dues of the Borrower.

11) The Borrower agrees, accepts and undertakes to pay stamp duty charges in relation to this Agreement and shall indemnify Lender against any and all liabilities with respect to, or resulting from delay or omission on the part of the Borrower to pay such applicable stamp duty. Borrower further, accepts, and acknowledges that the Lender shall, be entitled to levy any taxes, duties, imposts, rates, as may become applicable to this transaction, consequent to any changes in the regulatory requirements and the same shall come into operation on the effective date stipulated in the said regulation. Borrower further agrees accepts and acknowledges, consequent to the change in the regulatory requirement, should there be any change in the internal process, the Lender shall be at liberty to pass over such charges to the Borrower and debit the Borrower's account under intimation. Should there be any changes in the process on account of a request of the Borrower and such changes involves a cost, the same shall also be debited to the account of the Borrower. All changes in charges/interest shall be prospective other than changes caused by the regulatory requirement which shall be as per the effective date of such regulatory requirement. The Lender shall inform the Borrower about such charges for payment and on such intimation, Borrower shall remit the same without any objection whatsoever. Borrower also agrees and undertakes to correctly inform Lender of all their tax registration details and shall not raise any claim for loss of any claim or credit of such taxes. The Borrower agrees that it is the Borrower's responsibility to provide the correct registration number, in cases where the Borrower fails to furnish Goods and Services Tax ("GST") registration number, the Borrower will be treated as unregistered under GST. The Lender shall not be responsible for verification of GSTIN.

12) Borrower agrees, accepts and acknowledges that the Lender shall be within its legal rights and liberty to levy interest from the date of disbursement of the loan and also to ensure instalment cycles and dates have a fixed schedule, shall calculate interest for the period between the disbursement date and the first instalment date and charge interest at the Annualized interest rate (AIR), which is to be either paid along with the first instalment date or can be amortized along with loan amount, to be repaid along with PI payable, the details of which are specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement and for this purpose, disbursement of the loan date shall be the date of issue of delivery order to the Dealer.

13) The Borrower expressly agrees and covenants that the Borrower shall create the necessary charge/hypothecation in favour of the Lender on the Asset which has been financed by the Lender and also allow inspection of the same at all reasonable times to the Lender or its authorized representative. The Borrower further undertakes and confirms that the Borrower shall not make any alterations in or to the Asset except in the course of ordinary repairs, without prior written permission of the Lender and shall not remove or change or allow to be removed or change the identification numbers on the engine and/or chassis of the Asset or use the accessories except for the purpose of the Agreement. The Borrower further undertakes not to permanently affix or attach the Asset on to any immovable property or otherwise fasten permanently to anything attached to any immovable property so as to make the same as immovable property or properties or as a result of which the Asset is used for beneficial enjoyment of any immovable property. Furthermore, the Borrower agrees that the Lender shall have the right to conduct audits of the Borrower's accounts and records pertaining to the Asset. In the event that an audit report is inconclusive or delayed due to non-cooperation by the Borrower, the Lender reserves the right to determine the status of the account based on the available material and its own internal investigation or assessment. This includes Lender's right to classify the account as fraudulent if deemed necessary.

14) Borrower agrees, accepts, and undertakes to intimate the Lender of any change in his KYC documents or address or mobile number, fax number or email ID or employment or business and/or any change in the premises where the Asset is normally retained, within 10 days from the date of such change.

15) Borrower expressly agrees to keep the charged asset in good working condition, duly covered by a comprehensive insurance policy with all statutory dues duly paid on time, throughout the tenure of the Agreement.

16) Borrower hereby irrevocably appoints the Lender as Borrower's agent for the purpose of receiving all moneys payable under the said policy of insurance, to do all acts for that purpose and give discharge thereof and the Lender may notify the insurers of this condition. It is further clarified that the Lender is in no way concerned with the merits of any claim lodged by the Borrower with the insurance company in respect of the said Asset, or in case of any such claim being repudiated by the insurance company for any reason whatsoever, and that the privity of contract in respect of the insurance policy shall be between the Borrower and insurance company although subject to the Hypothecation clause as provided for in the policy of insurance.

17) Borrower undertakes not to put the hypothecated Asset for any use that are illegitimate, illegal and contravenes any provision of any law or rule governing the law of land including using the hypothecated Asset for storing or transporting any items or articles which are prohibited and also use or allow the use of Asset as a mode of transportation to perform an act of illegality or an act that shall incite or instigate any kind of social unrest or violence and in such an event, the Borrower shall be responsible for any damage or loss sustained by the Lender, as a result of such wrongful or unlawful use. The Borrower shall indemnify, protect, defend and hold the Lender harmless from and against losses, demands, damages, claims and charges of any/all kinds incurred or suffered by the Lender arising directly or indirectly as a result of or in connection with a breach of the foregoing obligations or any claim or proceedings initiated by any third party against the Lender arising out of or in connection with the foregoing. The Borrower further undertakes to keep the Lender informed about any notice, legal proceedings, or prosecution for any criminal offences against the Borrower by any third party or statutory authorities and in that event, it shall be the discretion of the Lender to terminate this Agreement and demand the full dues.

18) Borrower further acknowledges and accepts that in the event of total loss/theft of the Asset, it shall be the obligation of Borrower to create alternate security to the satisfaction of Lender and continue to repay the loan in terms of this Agreement. In the event of non-creation of any security, at the discretion of Lender, Agreement can be terminated, and Lender shall be entitled to recover all its dues as applicable including foreclosure charges and the consequences of default shall arise.

19) (a) The Borrower shall not, under any circumstances, relocate, transport, or transfer the Asset outside the territorial boundaries of India without obtaining the prior written consent of the Lender. Any such relocation or transfer attempted without the Lender's express written consent shall constitute a material breach of this Agreement and shall render the Borrower immediately liable for all outstanding amounts due under this Agreement, without prejudice to any other rights and remedies available to the Lender under this Agreement or applicable law.

Further, the Borrower may at any time with the prior written consent of the Lender and without any prejudice to the Lender's rights under this Agreement or in law, sell or transfer the Asset to any other person within or outside territory of India, subject to such terms and conditions as may be stipulated by the Lender including the following:

(i) the sale/transfer proceeds of the Asset shall be directly remitted to the Lender in cash or by an account payee demand draft/pay order/ cheque by the purchaser/buyer of the Asset or any other permissible mode of payment online. Such payment shall be appropriated towards the satisfaction of the outstanding amount and considered as payment towards discharge of the transferee's obligation to the Borrower.

(ii) the Borrower shall issue a bill of sale and pay applicable taxes (if any) on such sale of Asset to the appropriate authority.

The Borrower acknowledges and confirms that any unauthorized transfer, sale, or relocation of the Asset, or failure to comply with the conditions outlined in the Lender's written consent, shall be void ab initio. Notwithstanding any such transfer or sale, the Borrower shall continue to be indebted to the Lender for any amount remaining/outstanding for such appropriation and all remedies available to the Lender as herein given shall survive and the Lender shall be entitled and authorized to exercise its rights herein to recover its dues under this Agreement.

(b) Borrower agrees, accepts, and undertakes that in the event of the Borrower's voluntary surrender of the Asset under this agreement, the Borrower shall deliver the Asset to the branch of MMFSL in which where the Borrower's loan account is parked, at the Borrower's own expense and effort. The Borrower acknowledges and agrees that MMFSL shall bear no responsibility or obligation regarding the transportation, condition, or costs associated with the delivery of the vehicle. The Borrower further undertakes to ensure that the vehicle is delivered in a reasonably good condition, reflecting its use and wear, and with all related documentation, including keys, registration, and any other relevant papers, in order.

20) The Borrower agrees, accepts and acknowledges that the information shared, representations made are all true to the best knowledge and authority of the Borrower and undertakes to keep Lender indemnified against any consequences arising out of any non-disclosure or misrepresentation of facts or beyond the scope and authority of the Borrower.

21) Event of default-An event of default shall occur if the Borrower fails to fulfil any of the terms and conditions of this Agreement.

The event of default shall also occur if it is found that the Borrower has made any false or incorrect representations or warranties or when the Borrower either becomes insolvent or an event of insolvency has been initiated against the Borrower or is wound up by any court of Law or is subject to any criminal prosecution on account of any illegal activities or violation of any rules or regulations or there exist any circumstances which in the opinion of Lender jeopardizes Lender's interest or security or if the financial condition of the Borrower in the opinion of the Lender has deteriorated or in the event of the Borrower not providing additional security on demand by the Lender or upon death of the Borrower.

22) **Consequences upon event of default:**

Upon occurrence of any event of default and any time thereafter, the Lender shall be entitled to terminate the Agreement, recall the entire loan amount including all overdue instalments along with **penal charges** and the outstanding principal along with **foreclosure charges** as prescribed in Sanction Letter/KFS and/or Schedule of charges to this Agreement and shall

also be entitled to demand any taxes, charges and cost incurred by the Lender in connection with recovery of the loan amount including cost incurred on conveyance, travel, yard parking charges and any other cost incidental to the efforts by the Lender to recover its dues from the Borrower including legal cost.

The Lender shall also be entitled to invoke any or all of the following:

(i) On termination of the loan, in the event the Borrower doesn't pay the dues as demanded, initiate legal proceedings as applicable in terms of this Agreement to recover the legitimate dues from the Borrower.

(ii) Enforce its security, take custody of the hypothecated asset by giving 10 days written notice in advance to the Borrower and in the event of the Borrower failing to pay the recalled loan, take custody of the hypothecated asset from the Borrower or from the person in whose possession the hypothecated asset is. However, if the Lender has an apprehension that hypothecated asset is likely to be dismantled or disposed of or put to illegal use and circumstances in the view of the Lender does not warrant a notice in advance, the Lender shall be entitled to dispense with the notice and take custody of the hypothecated asset and on taking such custody, shall also intimate the Borrower about the same and demand the dues;

(iii) Value the hypothecated asset and bring the asset for sale either by way of private or public auction and before effecting the sale, give one more opportunity to the Borrower by giving 7 days written notice in advance to clear the dues. In the event the Borrower pays the dues so demanded, Lender shall return the Asset by informing the Borrower and issuing a release order to the yard maintaining authority to release the Asset to the Borrower. In the event of non - payment in terms of notice so issued, Lender shall be at liberty to sell the hypothecated Asset on **"as is where is"** condition either by way of e-auction/bids/tender/by way of private auction as it deems fit and appropriate the sale proceeds towards the dues payable by the Borrower and for any shortfall, shall initiate further appropriate recovery proceedings to secure the interest of the Lender. However, if sale of Asset realizes more amount than the dues of the Borrower, excess amount shall be refunded to the Borrower by Lender.

The rights, powers, and remedies available to the Lender under Law and under this Agreement, shall be exercised by the Lender through any of its employees or agent and the Lender may delegate any or all of the said powers and authorities to such employee or agent.

Notwithstanding anything above, it shall be the right of the Lender to seek all legal recourse in terms of applicable laws to ensure the legitimate interest of the Lender is always protected.

It is agreed and covenanted by the Borrower that the right of the Lender to recover the amount due and payable in terms of the Agreement including recovering any cost incurred under any head along with applicable interest in terms of the Agreement, shall survive termination of the Agreement and the Lender shall be entitled to take all necessary and applicable legal measures to ensure that the legitimate dues of the Lender are recovered from the Borrower.

23) **Foreclosure:**

The Borrower may, if the Borrower so desires, subject to the approval of the Lender in writing, foreclose the loan before the end of the tenure of the Agreement, on payment of all overdue installments, charges, overdue charges and the outstanding principal on the foreclosure date along with **foreclosure charges** as specified in Sanction Letter/KFS and/or Schedule of Charges to this Agreement.

24) This Agreement is personal to the Borrower and Borrower's right and/or obligations shall not be assignable or chargeable by the Borrower directly or indirectly without the prior written consent of the Lender.

25) The Guarantor in consideration of the Lender agreeing to grant this loan to the Borrower further agrees declares and guarantees as under:

a. The Borrower shall observe and perform the terms and conditions of this Agreement and shall pay on demand all monies due or which may become due under this Agreement by way of PI, interest, damages, cost, charges, **penal charges**, expenses or taxes / levies and if the Borrower makes any default in observance and performance of any of the terms and conditions or payment of any monies due and payable hereunder, the Guarantor shall forthwith on demand, pay to the Lender such monies which are due and payable by Borrower along with applicable interest charges till the date of payment calculated from the date of payment was due, failing which the consequence of default shall get triggered.

b. The Lender shall be at liberty to make variations in this Agreement or in any terms and conditions thereof including manner of the payment of PI or to enter into any arrangement with the Borrower or to show any indulgence or to give time or not to sue, without in any way affecting the liability of the Guarantor and the Guarantor hereby agrees that the Guarantor shall not be discharged from the liability hereunder by the Lender releasing the Borrower or any of the security it may hold by any act of omission or commission, the legal consequences whereof may otherwise have been to discharge the Guarantor.

c. A notice of demand by the Lender against the Borrower shall be the final and conclusive evidence that the Borrower has committed a default and that the monies and the amount claimed there under is due and payable by the Borrower to the Lender and the Guarantor shall not be entitled to challenge the notice on the ground that no default has been committed or the amount mentioned therein as due and payable is not payable or no separate demand of notice has been issued against him or on any other ground.

d. This guarantee shall not be affected by the death, insolvency, or winding up of the Borrower.

e. The Lender shall be at liberty to sue the Borrower and/or the Co-Borrower and / or the / Guarantor jointly and / or severally or shall be entitled to proceed against the Co-Borrower / Guarantor only in the first instance.

f. The indemnities/guarantees contained herein shall remain in full force and effect for the entire period of the Agreement and shall survive the termination by the Borrower or the cancellation of the loan or this Agreement in so far as they relate to events which occurred during the period of the aforesaid Agreement or any extension hereof.

26) **Securitization/Assignment:**

The Borrower expressly recognizes and accepts that the Lender shall be absolutely entitled and have full power and authority to sell, assign or transfer this loan account in any manner, in whole or in part, and in such manner and on such terms as the Lender may decide. However, in such an event, there shall be no additional liability or obligation to the Borrower other than what is specifically mentioned in this Agreement and the assignee shall be entitled to all the rights and authority as a Lender.

The right of sale, transfer, assignment or securitization and to create security interest shall be available not only with respect to the loan or part thereof but also with respect to the security interest created by the Borrower and such sale, transfer, assignment, or securitization may be made in respect of the loan with or without security interest or may be made only with respect to security interest and such sale, transfer, assignment or securitization of the loan or part thereof may be made in favour of one person and sale, transfer or assignment of security interest may be made in favour of other person whether as a transferee, assignee or purchaser or as trustee holding in trust for and for the benefit of the persons to whom the loan or part thereof maybe sold, transferred, assigned or securitized and such sale, transfer, and assignment may be made by the Lender not only in respect of its right, title, interest and benefit under this Agreement but also under any other loan documents.

Without prejudice to the generality of the foregoing, in the event Lender avails loan assistance from banks, it shall be entitled to secure the loan assistance so availed/ to be availed by it by creating a charge, mortgage or other interest in the security obtained by Lender from the security providers against the loan. The security providers permit Lender to transfer its interest in the security in favour of banks and financial institutions. The Borrower irrevocably and unconditionally confirms that the Borrower shall continue to be bound by the terms of the loan documents and the other documents in relation to the loan notwithstanding such transfer or assignment by the Lender.

27) **Cross liability:**

The Borrower hereby agrees, accepts and acknowledges that Borrower shall not be entitled to seek NOC or No Dues Certificate, even on completion of all the obligations arising out of this Agreement in the event of any liability which is fallen due or which is likely to fall due on account of any other loan liability which is existing by virtue of any other Agreement executed by the Borrower with the Lender either in the capacity as a Borrower, Co-Borrower or as a Guarantor and further acknowledges and accepts that the Lender shall be entitled to withhold the release of hypothecation unless and until all the dues and liabilities are fully settled in terms of all such agreements executed by the Borrower and still remaining undischarged.

The Borrower expressly accepts that if the Borrower fails to pay any monies when due or which may be declared due prior to the date when it would otherwise have become due or commits any other default under any agreement (including this Agreement or any other agreement with any of the Group Company, as defined by the Companies Act, 2013, as amended and modified from time to time) with the Lender under which the Borrower is enjoying any financial/other facility, then in such event the Lender shall, without prejudice to any of its specific rights under each of the agreements, be absolutely entitled to hold issue of no dues certificate or no objection certificate in respect of this Agreement. Notwithstanding, all the dues arising out of this Agreement are to be paid in full.

28) **Notice:**

Any notices/communications addressed to the Lender shall be sent at Lender's correspondence address - 302, Amiti Building, Agastya Corporate Park, Opposite Fire Brigade station, LBS Road, Kamani Junction, Kurla West, Mumbai – 400 070.

All notices sent by Lender to Borrower under this Agreement shall be in writing and shall be deemed to have been duly served on dispatch by registered post or by an electronic mail sent to the registered e-mail ID of the Borrower or SMS or WhatsApp or text message to the registered mobile number of the Borrower or delivered in person to the Borrower and duly acknowledged by the Borrower, however in case of delivery by any instant messaging services, simultaneous service by e-mail shall be effected.

29) Grievance Redressal

For any grievance the Borrower may opt to write to Grievance Redressal Officer, Mahindra & Mahindra Financial Services Ltd, 3rd floor, Agastya Corporate Park, Piramal Amity Building, Kurla (W), Mumbai 400022, Email ID grievanceredressal_mmfsl@mahindra.com or website at https://www.mahindrafinance.com/customer-service

30) Arbitration:

All disputes, differences and/or claim arising out of these presents or in any way touching or concerning the same or as to constructions, meaning or effect hereof or as to the right and liabilities of the parties hereunder shall be settled by arbitration to be held in accordance with the provision of the Arbitration and Conciliation Act, 1996 or any statutory amendments thereof and shall be referred to the sole arbitrator to be appointed by the Lender. In such a case, the Borrower shall have the right to convey their acceptance/non acceptance of the appointment of sole arbitrator within 10 days from the date of appointment of the sole arbitrator with valid reasons for objection; in the absence of any written communication either by Registered post or by an email to the sole arbitrator so appointed, it shall be deemed to be an acceptance of the appointment of arbitrator. In the event of death, refusal, neglect, inability, or incapability of a person so appointed to act as an arbitrator, the Lender may appoint a new arbitrator. The arbitrator shall not be required to give any reasons for the award and the award of the arbitrator shall be final and binding on all parties concerned. The arbitration proceeding shall be held at any of the locations viz Mumbai/Thane/Delhi/Chennai/Kolkata. Notice of invocation, commencement and the hearings of arbitration proceedings shall be communicated to the Borrower by Registered Post at the last known address provided to the Lender and/or by an email to the registered email id of the Borrower and/or also by WhatsApp message to the registered mobile number of the Borrower. The arbitration proceedings shall be held in person/video conferencing as may be decided by the Arbitral Tribunal and communicated accordingly. Parties to the proceedings shall also submit their claim, pleadings, counters, rejoinders by a Registered Post to the Arbitral Tribunal. Arbitration proceedings shall be only in English Language. All correspondence with respect to online arbitration shall also be sent to the registered address of the Borrower and shall be deemed to have been sent on dispatch of such communication.

31) Jurisdiction:

It is agreed by and between the parties hereto that subject to above Arbitration clause, the Courts of competent jurisdiction shall have jurisdiction in respect of any matter, claims or dispute arising out of or in any way relating to these presents or to anything to be done under and pursuant to these presents or of any clause or provision thereof.

32) Sharing of Data:

The Borrower hereby agrees with and authorizes the Lender and all of its divisions, affiliates, holding company, subsidiaries, joint ventures, related parties and other Mahindra group companies (collectively the "**Mahindra Entities**") accessing/to access the Borrower's basic data/contact details provided herewith, i.e. the name, address, telephone number(s), e-mail address(es), birth date and/or anniversary date of the Borrower. The Borrower hereby consents to, agrees and acknowledges that any of the Mahindra Entities may call/email/SMS the Borrower on any of the basic contact details shared by the Borrower in order to assist with the Borrower's loan or to keep the Borrower informed regarding the Asset details, or to send the Borrower any marketing and other Asset or service related communication and other offers of any of the Mahindra Entities. The Borrower acknowledges that it has provided the details herein at its sole discretion and confirms that no Mahindra Entity shall be held responsible or liable for any claim arising out of accessing or using its basic data / contact details shared by the Borrower. The Borrower consents to being assigned a unique identity within the Mahindra Group, to be shared amongst all Mahindra Entities. The Borrower shall withdraw Borrower's consent by sending a written communication to the Lender at the Lender's correspondence address, through registered post.

33) **Disclosures by Lender and Consent of Borrower**

The Lender shall have a right to disclose the names and particulars of the Borrower and the credit facilities availed of/to be availed, by the Borrower to the authorities/entities mentioned below. The Borrower understands that as a pre-condition, relating to grant of the loans/advances/other non-fund-based credit facilities provided to the Borrower, the Lender requires the Borrower's consent for the disclosure by the Lender of, information and data relating to the Borrower, of the credit facility availed of/to be availed of, by the Borrower, obligations assumed/ to be assumed, by the Borrower, in relation thereto and default, if any, committed by the Borrower, in discharge thereof.

Accordingly, the Borrower hereby agrees and gives consent for disclosure by the Lender of all or any such information and data relating to the Borrower including the information or data relating to any credit facility availed of/ to be availed of, by the Borrower and default, if any, committed by the Borrower, in discharge of the Borrower's such obligation as the Lender may deem appropriate and necessary, to disclose and furnish to Credit Information Bureau (India) Limited ("**CIBIL**") or any other agency authorized in this behalf by Reserve Bank of India ("**RBI**").

The Borrower further agrees and gives consent for disclosing / submitting by the Lender, the '**financial information**' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('**Code**' for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the Credit Financial facilities availed from the Lender, to any '**Information Utility**' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the Lender from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Lender, as and when requested by the concerned 'IU'.

The Borrower authorizes the Lender to exchange, share all information and details as provided by the Borrower in relation to this loan to any third party including but not limited to its service providers, banks, financial institutions, credit bureaus, telecommunication companies, statutory bodies, etc. for customer verification, personalization of products or services, credit rating, data enrichment, marketing or promotion of the Lender or borrowings of Lender or related products or that of its associates and affiliates or for enforcement of the obligations of the Borrower and the Borrower hereby confirms that the Borrower shall not hold the Lender liable for the use/sharing of the information as stated above. The Borrower further authorizes the Lender's representative to call/SMS the Borrower towards this loan and other products/services. This consent overrides the registration of Borrower for DNC/NDNC. The Borrower hereby consents to the Lender and/or its partners for obtaining and authenticating my "**Know Your Customer**" (KYC) information with relevant authorities (e.g. NSDL, UIDAI, State Transport Dept. etc.), for fulfilling KYC requirements. The Borrower hereby authorizes the Lender to store the personal information required as part of the Agreement which could have been obtained via KYC/e-KYC process of the Borrower in encrypted form for the period of 5 (five) years from the date of termination or expiry of this Agreement.

34) The content of this Agreement has been read out, explained, and interpreted to the Borrower, in the vernacular language of the Borrower, Co-Borrower and Guarantor and understood by the Borrower, Co-Borrower and the Guarantor at the time of availing the loan and execution of this Agreement, only thereafter the Borrower, Co-Borrower and the Guarantor have put their signature/thumb impression on this Agreement (electronically/ hand). The vernacular translation of terms and conditions of this Agreement shall be available at Lender's website, i.e. www.mahindrafinance.com. In the case of multiple interpretations of any part of this Agreement, English language shall prevail.

IN WITNESS WHEREOF the parties have hereunto set and subscribed to preamble and clauses 1 to 34 on page number 1 to 4 in this Agreement and set their respective hands to this writing on this 31 day of 05 month of 20 25

For Mahindra & Mahindra Financial Services Ltd.

Authorised Signatory

27/01/2711

Authorised Signatory

Wevois labs pvt ltd limited

For WEVOIS LABS PVT. LTD.

(Lender)

DIRECTOR

(Name of the Borrower) (Signature of the Borrower)

Abhishek Gupta

(Name of the Co-Borrower) (Signature of the Co-Borrower)

(Name of the Co-Borrower) (Signature of the Co-Borrower)

(Name of the Co-Borrower) (Signature of the Co-Borrower)

Abhinav Shekhar Vatsa

(Name of the Guarantor) (Signature of the Guarantor)

7808041672

LOAN AGREEMENT

This Loan Agreement (the **"Agreement"**) against loan application number as specified above, is executed on the date as specified at last page of this Agreement between MAHINDRA & MAHINDRA FINANCIAL SERVICES LIMITED, a Company incorporated and registered under the Companies Act, 1956 and having its registered office is at Gateway Building, Apollo Bunder, Mumbai – 400001, Website: www.mahindrafinance.com CIN : L65921MH1991PLC059642 (hereinafter called **"the Lender"**) of the First Part AND Borrower, Co-Borrower hereinafter jointly (if the context so admits) called the **"Borrower"** of the Second Part AND **"Guarantor"** of the Third Part. The Guarantor guarantees due performance and observance of all covenants and terms of this Agreement. The Borrower, Co-Borrower and Guarantor are more so fully specified and described at end of this Agreement. The Sanction Letter/Key Fact Statement (KFS) shall be executed by the parties along with execution of this Agreement. (The expression **"The Lender"** shall, where the context so admits mean and include its successors and assigns and the expression **"Borrower"** and the **"Guarantor"** (herein after collectively called as "Borrower") depending on whether an individual, firm or company shall, where the context so admits, mean its/his/her legal heirs, executors and administrators, assigns and successors in interest.

Whereas the Borrower has approached the Lender, seeking financial assistance for purchase of new vehicle/equipment & accessories/used vehicle/used vehicle equipment & accessories (**"Asset"**), more so fully described in Sanction Letter/KFS to this Agreement. The Borrower, has identified the Asset, dealer/seller/registered owner, type, model and make of the Asset and after evaluating its usability, value, make model and relevant documents, requested the Lender for a loan for purchasing the said Asset.

WHEREAS the Lender having considered the request of the Borrower and after evaluating the relevant papers, documents including the credentials of the Borrower has agreed to provide a loan subject to the terms and conditions of this Agreement and such other terms as the Lender deems fit.

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1) The Lender based on the Borrower's request, representations, warranties, covenants and undertakings as contained herein and in the application for loan and other documents executed or tendered by the Borrower in relation to the loan, hereby lends and the Borrower hereby borrows a loan amount more specifically mentioned in Sanction Letter/KFS and/or Schedule of charges (hereinafter referred as Schedule of charges), on the terms and conditions contained herein, for purchasing the Asset which is more specifically mentioned in Sanction Letter/KFS. Schedule of charges shall be provided to the Borrower by the Lender upon execution of the Agreement and shall also be detailed in the website of the Lender i.e. www.mahindrafinance.com. The terms mentioned in Sanction Letter/KFS and Schedule of charges shall be read together with this Agreement and shall form part and parcel of this Agreement.

2) Borrower hereby agrees, accepts and acknowledges that it is the absolute choice of the Borrower in determining the Asset including the colour, make, model, value and the supplier/seller of the same including the decision to buy the Asset and the Lender has no role whatsoever. Borrower further hereby shall hypothecate the said Asset in favor of the Lender and create necessary records in the invoice of the Asset and in case the Asset is a vehicle/equipment, mark the hypothecation in the registration certificate of the vehicle as well and shall submit necessary documents for recording the creation of hypothecation with all concerned authorities. A copy of the same shall be given to the Lender within 15 working days from the date of the delivery.

3) The obligation of the Lender to make a disbursement under this Agreement shall be subject to the Borrower performing all its obligations under the sanction letter and this Agreement and delivery of all the documents and/or evidence, to the satisfaction of the Lender.

4) Borrower further agrees and covenants to pay the margin money being the difference between the sale consideration of the Asset including any charges on account of insurance, registration etc., and the loan amount, directly to the supplier/seller of the Asset and such Asset shall be always subject to hypothecation in favor of the Lender, on Lender disbursing the loan amount either to the supplier or seller in discharge of the Borrower's obligation to pay the sale consideration to the supplier/seller.

5) Borrower further agrees, confirms, and undertakes that the loan shall be considered as disbursed when the loan amount is paid by Lender, to either a dealer and/or to the seller and/ or the Borrower and/or any other party as requested by the Borrower and approved by Lender, in one or multiple instalments. All such payments made by the Lender shall be considered as a debt due and shall be repaid by the Borrower along with applicable interest on their respective due dates and notwithstanding any delay in the delivery of the Asset or getting the Asset registered or installed. Notwithstanding the same, Borrower shall repay the loan amount without any delay in terms of the repayment structure specified in Sanction Letter/KFS and/or Schedule of charges or any other repayment structure, which shall be issued by the Lender, subsequent to the signing of this Agreement and disbursement of the advance and also ensure that the interest of Lender is fully protected to the satisfaction of the Lender and on demand, shall create adequate security.

6) Borrower agrees, accepts and undertakes that the obligation to repay the loan along with interest in Periodical Instalments (PI), on the fixed due dates as specified in Sanction Letter/ KFS and/or Schedule of charges, either by auto debit advised to Borrower's bankers, net banking transfers, post-dated cheques, pay orders, by remittance in cash, UPI/QR or any other permissible mode of payment online or at the nearest branch or to the Lender's representative or to the nearest cash collection center against valid money receipt issued by the Lender, shall be independent of use of the Asset and shall not be subject to any change on account of any failure of Asset, and its utility. Borrower agrees and undertakes to issue and sign mandates for repayment of dues and shall ensure availability of sufficient funds in respective bank accounts on the respective due dates to enable clearance of such mandate when presented by Lender and/or its bankers. The Borrower shall not stop payment of such mandate and/or close the bank account from where such mandates were issued. If the Borrower is compelled to do so, the Borrower agrees to immediately within 3 working days, send a revised mandate to Lender in the manner prescribed by Lender.

Borrower further agrees that when the payment to the loan account are remitted through payment aggregators/payment gateways or by any third party to the credit of the Borrower's account, all such payments shall be duly authorized by the Borrower and the Borrower shall be solely responsible for the legitimacy of the payment, the source of the payment and shall also hold the Lender indemnified against any claim under any statutory provisions or regulations on account of such third party transfer.

7) Borrower agrees, accepts and acknowledges that time is the essence of the contract and undertakes to pay the instalments on the due dates without fail and on making such payment, Lender shall have the absolute right to appropriate the instalment paid towards any charges, **penal charges**, principal or interest at the discretion of the Lender which shall get reflected in the statement of account and such statement of account shall be deemed to be the final statement of account and the Borrower shall accept the same and further agrees to reimburse the Lender with interest any payment made or cost or expenditure incurred by the Lender on account of the Borrower, which otherwise would have been paid/payable by the Borrower.

Borrower further agrees that in the event of Borrower making any payment towards the loan, whether in part or in full, prior to the specified due date(s), the Lender shall not be liable to pay or compensate the Borrower for any interest, or other financial benefits on the amount prepaid. Such prepayment shall be made at free will of the Borrower and shall be applied towards the principal or outstanding dues as determined by Lender's standard policy/process, without any obligation to the Borrower for interest on said prepaid amount.

8) The Borrower agrees to place with the Lender as security Deposit, the sum as mentioned in Sanction Letter / KFS and/or Schedule of charges, on execution of this Agreement and hereby confers an unconditional and absolute lien on the Lender in respect of the security deposit to the Lender and unconditional right to adjust said security deposit to first set off costs incurred in relation to enforcement of this Agreement and then set off delayed payment charges arising out of late remittance of PI due under this Agreement and finally to set off the instalments due in the inverse order of maturity. Notwithstanding anything contained in this Agreement, Lender shall have lien over all the Assets including fixed deposit (if any) of Borrower in Lender's possession and control and right to set off against any monies due to the Lender from the Borrower and to combine all accounts of Borrower for recovery of Lender's dues.

9)The Borrower further agrees and undertakes to pay to the Lender, without prejudice to the rights of the Lender, on or without a demand made by the Lender, any charges fallen due and also pay **penal charges**, at the rate specified in Sanction Letter / KFS and/or Schedule of charges, for the instalments that has remained unpaid beyond the due date of the instalment and the **penal charges** shall be calculated from the due date till the actual date of payment, on the amount that has remained outstanding beyond due date of PI. The Borrower acknowledges that any sums payable under this Agreement by way of interest, **penal charges**, or foreclosure charges, are reasonable and represent genuine pre-estimates of the loss likely to be incurred by the Lender in the event of non-payment by the Borrower of such sums when due. The Borrower further acknowledges that the charges (other than interest) specified in / Sanction Letter / KFS and/or Schedule of charges are exclusive of tax, duties, levies as applicable and shall be payable additionally over and above the charges prescribed.

10) In the event of the Lender approaching the Borrower for collecting instalment dues for whatsoever the reason, Lender shall be entitled to debit the account of the Borrower for collection charges as specified in the Sanction Letter / KFS and/or Schedule of charges for every visit made.

Borrower shall not withhold any payments that are due to the Lender, even on account of any error in the computation of the instalment amount or in the computation of the **penal**

charges and agrees that the obligation to pay the installment is absolute and unconditional, however, should there be any discrepancy in the statement of account, Lender agrees to rectify the same, including refund or adjust the money towards the subsequent dues of the Borrower.

11) The Borrower agrees, accepts and undertakes to pay stamp duty charges in relation to this Agreement and shall indemnify Lender against any and all liabilities with respect to, or resulting from delay or omission on the part of the Borrower to pay such applicable stamp duty. Borrower further, accepts, and acknowledges that the Lender shall be entitled to levy any taxes, duties, imposts, rates, as may become applicable to this transaction, consequent to any changes in the regulatory requirements and the same shall come into operation on the effective date stipulated in the said regulation. Borrower further agrees accepts and acknowledges, consequent to the change in the regulatory requirement, should there be any change in the internal process, the Lender shall be at liberty to pass over such charges to the Borrower and debit the Borrower's account under intimation. Should there be any changes in the process on account of a request of the Borrower and such changes involves a cost, the same shall also be debited to the account of the Borrower. All changes in charges/interest shall be prospective other than changes caused by the regulatory requirement which shall be as per the effective date of such regulatory requirement. The Lender shall inform the Borrower about such charges for payment and on such intimation, Borrower shall remit the same without any objection whatsoever. Borrower also agrees and undertakes to correctly inform Lender of all their tax registration details and shall not raise any claim for loss of any claim or credit of such taxes. The Borrower agrees that it is the Borrower's responsibility to provide the correct registration number. In cases where the Borrower fails to furnish Goods and Services Tax ("GST") registration number, the Borrower will be treated as unregistered under GST. The Lender shall not be responsible for verification of GSTIN.

12) Borrower agrees, accepts and acknowledges that the Lender shall be within its legal rights and liberty to levy interest from the date of disbursement of the loan and also to ensure instalment cycles and dates have a fixed schedule, shall calculate interest for the period between the disbursement date and the first instalment date and charge interest at the Annualized Interest rate (AIR) which is to be either paid along with the first instalment date or can be amortized along with loan amount to be repaid along with PI payable, the details of which are specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement and for this purpose, disbursement of the loan date shall be the date of issue of delivery order to the Dealer.

13) The Borrower expressly agrees and covenants that the Borrower shall create the necessary charge/hypothecation in favour of the Lender on the Asset which has been financed by the Lender and also allow inspection of the same at all reasonable times to the Lender or its authorized representative. The Borrower further undertakes and confirms that the Borrower shall not make any alterations in or to the Asset except in the course of ordinary repairs, without prior written permission of the Lender and shall not remove or change or allow to be removed or change the identification numbers on the engine and/or chassis of the Asset or use the accessories except for the purpose of the Agreement. The Borrower further undertakes not to permanently affix or attach the Asset on to any immovable property or otherwise fasten permanently to anything attached to any immovable property so as to make the same as immovable property or properties or as a result of which the Asset is used for beneficial enjoyment of any immovable property. Furthermore, the Borrower agrees that the Lender shall have the right to conduct audits of the Borrower's accounts and records pertaining to the Asset. In the event that an audit report is inconclusive or delayed due to non-cooperation by the Borrower, the Lender reserves the right to determine the status of the account based on the available material and its own internal investigation or assessment. This includes Lender's right to classify the account as fraudulent if deemed necessary.

14) Borrower agrees, accepts, and undertakes to intimate the Lender of any change in his KYC documents or address or mobile number, fax number or email ID or employment or business and/or any change in the premises where the Asset is normally retained, within 10 days from the date of such change.

15) Borrower expressly agrees to keep the charged asset in good working condition, duly covered by a comprehensive insurance policy with all statutory dues duly paid on time, throughout the tenure of the Agreement.

16) Borrower hereby irrevocably appoints the Lender as Borrower's agent for the purpose of receiving all moneys payable under the said policy of insurance, to do all acts for that purpose and give discharge thereof and the Lender may notify the insurers of this condition. It is further clarified that the Lender is in no way concerned with the merits of any claim lodged by the Borrower with the insurance company in respect of the said Asset, or in case of any such claim being repudiated by the insurance company for any reason whatsoever, and that the privity of contract in respect of the insurance policy shall be between the Borrower and insurance company although subject to the Hypothecation clause as provided for in the policy of insurance.

17) Borrower undertakes not to put the hypothecated Asset for any use that are illegitimate, illegal and contravenes any provision of any law or rule governing the law of land including using the hypothecated Asset for storing or transporting any items or articles which are prohibited and also use or allow the use of Asset as a mode of transportation to perform an act of illegality or an act that shall incite or instigate any kind of social unrest or violence and in such an event, the Borrower shall be responsible for any damage or loss sustained by the Lender, as a result of such wrongful or unlawful use. The Borrower shall indemnify, protect, defend and hold the Lender harmless from and against losses, demands, damages, claims and charges of any/all kinds incurred or suffered by the Lender arising directly or indirectly as a result of or in connection with a breach of the foregoing obligations or any claim or proceedings initiated by any third party against the Lender arising out of or in connection with the foregoing. The Borrower further undertakes to keep the Lender informed about any notice, legal proceedings, or prosecution for any criminal offences against the Borrower by any third party or statutory authorities and in that event, it shall be the discretion of the Lender to terminate this Agreement and demand the full dues.

18) Borrower further acknowledges and accepts that in the event of total loss/theft of the Asset, it shall be the obligation of Borrower to create alternate security to the satisfaction of Lender and continue to repay the loan in terms of this Agreement. In the event of non-creation of any security, at the discretion of Lender, Agreement can be terminated, and Lender shall be entitled to recover all its dues as applicable including foreclosure charges and the consequences of default shall arise.

19) (a) The Borrower shall not, under any circumstances, relocate, transport, or transfer the Asset outside the territorial boundaries of India without obtaining the prior written consent of the Lender. Any such relocation or transfer attempted without the Lender's express written consent shall constitute a material breach of this Agreement and shall render the Borrower immediately liable for all outstanding amounts due under this Agreement, without prejudice to any other rights and remedies available to the Lender under this Agreement or applicable law.

Further, the Borrower may at any time with the prior written consent of the Lender and without any prejudice to the Lender's rights under this Agreement or in law, sell or transfer the Asset to any other person within or outside territory of India, subject to such terms and conditions as may be stipulated by the Lender including the following:

(i) the sale/transfer proceeds of the Asset shall be directly remitted to the Lender in cash or by an account payee demand draft/pay order/ cheque by the purchaser/buyer of the Asset or any other permissible mode of payment online. Such payment shall be appropriated towards the satisfaction of the outstanding amount and considered as payment towards discharge of the transferee's obligation to the Borrower.

(ii) the Borrower shall issue a bill of sale and pay applicable taxes (if any) on such sale of Asset to the appropriate authority.

The Borrower acknowledges and confirms that any unauthorized transfer, sale, or relocation of the Asset, or failure to comply with the conditions outlined in the Lender's written consent, shall be void ab initio. Notwithstanding any such transfer or sale, the Borrower shall continue to be indebted to the Lender for any amount remaining outstanding for such appropriation and all remedies available to the Lender as herein given shall survive and the Lender shall be entitled and authorized to exercise its rights herein to recover its dues under this Agreement.

(b) Borrower agrees, accepts, and undertakes that in the event of the Borrower's voluntary surrender of the Asset under this agreement, the Borrower shall deliver the Asset to the branch of MMFSL in which where the Borrower's loan account is parked, at the Borrower's own expense and effort. The Borrower acknowledges and agrees that MMFSL shall bear no responsibility or obligation regarding the transportation, condition, or costs associated with the delivery of the vehicle. The Borrower further undertakes to ensure that the vehicle is delivered in a reasonably good condition, reflecting its use and wear, and with all related documentation, including keys, registration, and any other relevant papers, in order.

20) The Borrower agrees, accepts and acknowledges that the information shared, representations made are all true to the best knowledge and authority of the Borrower and undertakes to keep Lender indemnified against any consequences arising out of any non-disclosure or misrepresentation of facts or beyond the scope and authority of the Borrower.

21) Event of default: An event of default shall occur if the Borrower fails to fulfil any of the terms and conditions of this Agreement.

The event of default shall also occur if it is found that the Borrower has made any false or incorrect representations or warranties or when the Borrower either becomes insolvent or an event of insolvency has been initiated against the Borrower or is wound up by any court of Law or is subject to any criminal prosecution on account of any illegal activities or violation of any rules or regulations or there exist any circumstances which in the opinion of Lender jeopardizes Lender's interest or security or if the financial condition of the Borrower in the opinion of the Lender has deteriorated or in the event of the Borrower not providing additional security on demand by the Lender or upon death of the Borrower.

22) **Consequences upon event of default:**

Upon occurrence of any event of default and any time thereafter, the Lender shall be entitled to terminate the Agreement, recall the entire loan amount including all overdue installments along with **penal charges** and the outstanding principal along with **foreclosure charges** as prescribed in Sanction Letter/KFS and/or Schedule of charges to this Agreement and shall

also be entitled to demand any taxes, charges and cost incurred by the Lender in connection with recovery of the loan amount including cost incurred on conveyance, travel, yard parking charges and any other cost incidental to the efforts by the Lender to recover its dues from the Borrower including legal cost.

The Lender shall also be entitled to invoke any or all of the following:

(i) On termination of the loan, in the event the Borrower doesn't pay the dues as demanded, initiate legal proceedings as applicable in terms of this Agreement to recover the legitimate dues from the Borrower.

(ii) Enforce its security, take custody of the hypothecated asset by giving 10 days written notice in advance to the Borrower and in the event of the Borrower failing to pay the recalled loan, take custody of the hypothecated asset from the Borrower or from the person in whose possession the hypothecated asset is. However, if the Lender has an apprehension that hypothecated asset is likely to be dismantled or disposed of or put to illegal use and circumstances in the view of the Lender does not warrant a notice in advance, the Lender shall be entitled to dispense with the notice and take custody of the hypothecated asset and on taking such custody, shall also intimate the Borrower about the same and demand the dues;

(iii) Value the hypothecated asset and bring the asset for sale either by way of private or public auction and before effecting the sale, give one more opportunity to the Borrower by giving 7 days' written notice in advance to clear the dues. In the event the Borrower pays the dues so demanded, Lender shall return the Asset by informing the Borrower and issuing a release order to the yard maintaining authority to release the Asset to the Borrower. In the event of non – payment in terms of notice so issued, Lender shall be at liberty to sell the hypothecated Asset on **"as is where is"** condition either by way of e-auction/bid/tender/by way of private auction as it deems fit and appropriate the sale proceeds towards the dues payable by the Borrower and for any shortfall, shall initiate further appropriate recovery proceedings to secure the interest of the Lender. However, if sale of Asset realizes more amount than the dues of the Borrower, excess amount shall be refunded to the Borrower by Lender.

The rights, powers, and remedies available to the Lender under Law and under this Agreement, shall be exercised by the Lender through any of its employees or agent and the Lender may delegate any or all of the said powers and authorities to such employee or agent.

Notwithstanding anything above, it shall be the right of the Lender to seek all legal recourse in terms of applicable laws to ensure the legitimate interest of the Lender is always protected.

It is agreed and covenanted by the Borrower that the right of the Lender to recover the amount due and payable in terms of the Agreement including recovering any cost incurred under any head along with applicable interest in terms of the Agreement, shall survive termination of the Agreement and the Lender shall be entitled to take all necessary and applicable legal measures to ensure that the legitimate dues of the Lender are recovered from the Borrower.

23) **Foreclosure:**

The Borrower may, if the Borrower so desires, subject to the approval of the Lender in writing, foreclose the loan before the end of the tenure of the Agreement, on payment of all overdue installments, charges, overdue charges and the outstanding principal on the foreclosure date along with **foreclosure charges** as specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement.

24) This Agreement is personal to the Borrower and Borrower's right and/or obligations shall not be assignable or chargeable by the Borrower directly or indirectly without the prior written consent of the Lender.

25) The Guarantor in consideration of the Lender agreeing to grant this loan to the Borrower further agrees declares and guarantees as under:

a. The Borrower shall observe and perform the terms and conditions of this Agreement and shall pay on demand all monies due or which may become due under this Agreement by way of PI, interest, damages, cost, charges, **penal charges**, expenses or taxes / levies and if the Borrower makes any default in observance and performance of any of the terms and conditions or payment of any monies due and payable hereunder, the Guarantor shall forthwith on demand, pay to the Lender such monies which are due and payable by Borrower along with applicable interest charges till the date of payment calculated from the date of payment was due, failing which the consequence of default shall get triggered.

b. The Lender shall be at liberty to make variations in this Agreement or in any terms and conditions thereof including manner of the payment of PI or to enter into any arrangement with the Borrower or to show any indulgence or to give time or not to sue, without in any way affecting the liability of the Guarantor and the Guarantor hereby agrees that the Guarantor shall not be discharged from the liability hereunder by the Lender releasing the Borrower or any of the security it may hold by any act of omission or commission, the legal consequences whereof may otherwise have been to discharge the Guarantor.

c. A notice of demand by the Lender against the Borrower shall be the final and conclusive evidence that the Borrower has committed a default and that the monies and the amount claimed there under is due and payable by the Borrower to the Lender and the Guarantor shall not be entitled to challenge the notice on the ground that no default has been committed or the amount mentioned therein as due and payable is not payable or no separate demand of notice has been issued against him or on any other ground.

d. This guarantee shall not be affected by the death, insolvency or winding up of the Borrower.

e. The Lender shall be at liberty to sue the Borrower and/or the Co-Borrower and / or the / Guarantor jointly and / or severally or shall be entitled to proceed against the Co-Borrower / Guarantor only in the first instance.

f. The indemnities/guarantees contained herein shall remain in full force and effect for the entire period of the Agreement and shall survive the termination by the Borrower or the cancellation of the loan or this Agreement in so far as they relate to events which occurred during the period of the aforesaid Agreement or any extension hereof.

26) **Securitization/Assignment:**

The Borrower expressly recognizes and accepts that the Lender shall be absolutely entitled and have full power and authority to sell, assign or transfer this loan account in any manner, in whole or in part, and in such manner and on such terms as the Lender may decide. However, in such an event, there shall be no additional liability or obligation to the Borrower other than what is specifically mentioned in this Agreement and the assignee shall be entitled to all the rights and authority as a Lender.

The right of sale, transfer, assignment or securitization and to create security interest shall be available not only with respect to the loan or part thereof but also with respect to the security interest created by the Borrower and such sale, transfer, assignment, or securitization may be made in respect of the loan with or without security interest or may be made only with respect to security interest and such sale, transfer, assignment or securitization of the loan or part thereof may be made in favour of one person and sale, transfer or assignment of security interest may be made in favour of other person whether as a transferee, assignee or purchaser or as trustee holding in trust for and for the benefit of the persons to whom the loan or part thereof maybe sold, transferred, assigned or securitized and such sale, transfer, and assignment may be made by the Lender not only in respect of its right, title, interest and benefit under this Agreement but also under any other loan documents.

Without prejudice to the generality of the foregoing, in the event Lender avails loan assistance from banks, it shall be entitled to secure the loan assistance so availed/ to be availed by it by creating a charge, mortgage or other interest in the security obtained by Lender from the security providers against the loan. The security providers permit Lender to transfer its interest in the security in favour of banks and financial institutions. The Borrower irrevocably and unconditionally confirms that the Borrower shall continue to be bound by the terms of the loan documents and the other documents in relation to the loan notwithstanding such transfer or assignment by the Lender.

27) **Cross liability:**

The Borrower hereby agrees, accepts and acknowledges that Borrower shall not be entitled to seek NOC or No Dues Certificate, even on completion of all the obligations arising out of this Agreement in the event of any liability which is fallen due or which is likely to fall due on account of any other loan liability which is existing by virtue of any other Agreement executed by the Borrower with the Lender either in the capacity as a Borrower, Co-Borrower or as a Guarantor and further acknowledges and accepts that the Lender shall be entitled to withhold the release of hypothecation unless and until all the dues and liabilities are fully settled in terms of all such agreements executed by the Borrower and still remaining undischarged.

The Borrower expressly accepts that if the Borrower fails to pay any monies when due or which may be declared due prior to the date when it would otherwise have become due or commits any other default under any agreement (including this Agreement or any other agreement with any of the Group Company, as defined by the Companies Act, 2013, as amended and modified from time to time) with the Lender under which the Borrower is enjoying any financial/other facility, then in such event the Lender shall, without prejudice to any of its specific rights under each of the agreements, be absolutely entitled to hold issue of no dues certificate or no objection certificate in respect of this Agreement. Notwithstanding, all the dues arising out of this Agreement are to be paid in full.

28) **Notice:**

Any notices/communications addressed to the Lender shall be sent at Lender's correspondence address - 302, Amiti Building, Agastya Corporate Park, Opposite Fire Brigade station, LBS Road, Kamani Junction, Kurla West, Mumbai – 400 070.

All notices sent by Lender to Borrower under this Agreement shall be in writing and shall be deemed to have been duly served on dispatch by registered post or by an electronic mail sent to the registered e-mail ID of the Borrower or SMS or WhatsApp or text message to the registered mobile number of the Borrower or delivered in person to the Borrower and duly acknowledged by the Borrower, however in case of delivery by any instant messaging services, simultaneous service by e-mail shall be effected.

29) Grievance Redressal

For any grievance, the Borrower may opt to write to: Grievance Redressal Officer, Mahindra & Mahindra Financial Services Ltd, 3rd floor, Agastya Corporate Park, Piramal Amity Building, Kurla (W), Mumbai 400022, Email ID grievanceredressal_mmfsl@mahindra.com or website at https://www.mahindrafinance.com/customer-service.

30) Arbitration:

All disputes, differences and/or claim arising out of these presents or in any way touching or concerning the same or as to constructions, meaning or effect hereof or as to the right and liabilities of the parties hereunder shall be settled by arbitration to be held in accordance with the provision of the Arbitration and Conciliation Act, 1996 or any statutory amendments thereof and shall be referred to the sole arbitrator to be appointed by the Lender. In such a case, the Borrower shall have the right to convey their acceptance/non acceptance of the appointment of sole arbitrator within 10 days from the date of appointment of the sole arbitrator with valid reasons for objection. In the absence of any written communication either by Registered post or by an email to the sole arbitrator so appointed, it shall be deemed to be an acceptance of the appointment of arbitrator. In the event of death, refusal, neglect, inability, or incapability of a person so appointed to act as an arbitrator, the Lender may appoint a new arbitrator. The arbitrator shall not be required to give any reasons for the award and the award of the arbitrator shall be final and binding on all parties concerned. The arbitration proceeding shall be held at any of the locations viz Mumbai/Thane/Delhi/Chennai/Kolkata. Notice of invocation, commencement and the hearings of arbitration proceedings shall be communicated to the Borrower by Registered Post at the last known address provided to the Lender and/or by an email to the registered email id of the Borrower and/or also by WhatsApp message to the registered mobile number of the Borrower. The arbitration proceedings shall be held in person/video conferencing as may be decided by the Arbitral Tribunal and communicated accordingly. Parties to the proceedings shall also submit their claim, pleadings, counters, rejoinders by a Registered Post to the Arbitral Tribunal. Arbitration proceedings shall be only in English language. All correspondence with respect to online arbitration shall also be sent to the registered address of the Borrower and shall be deemed to have been sent on dispatch of such communication.

31) Jurisdiction:

It is agreed by and between the parties hereto that subject to above Arbitration clause, the Courts of competent jurisdiction shall have jurisdiction in respect of any matter, claims or dispute arising out of or in any way relating to these presents or to anything to be done under and pursuant to these presents or of any clause or provision thereof.

32) **Sharing of Data:**

The Borrower hereby agrees with and authorizes the Lender and all of its divisions, affiliates, holding company, subsidiaries, joint ventures, related parties and other Mahindra group companies (collectively the "**Mahindra Entities**") accessing/to access the Borrower's basic data/contact details provided herewith, i.e., the name, address, telephone number(s), e-mail address(es), birth date and/or anniversary date of the Borrower. The Borrower hereby consents to, agrees and acknowledges that any of the Mahindra Entities may call/email/SMS the Borrower on any of the basic contact details shared by the Borrower, in order to assist with the Borrower's loan or to keep the Borrower informed regarding the Asset details, or to send the Borrower any marketing and other Asset or service- related communication and other offers of any of the Mahindra Entities. The Borrower acknowledges that it has provided the details herein at its sole discretion and confirms that no Mahindra Entity shall be held responsible or liable for any claim arising out of accessing or using its basic data / contact details shared by the Borrower. The Borrower consents to being assigned a unique identity within the Mahindra Group, to be shared amongst all Mahindra Entities. The Borrower shall withdraw Borrower's consent by sending a written communication to the Lender at the Lender's correspondence address, through registered post.

33) **Disclosures by Lender and Consent of Borrower**

The Lender shall have a right to disclose the names and particulars of the Borrower and the credit facilities availed of/to be availed, by the Borrower to the authorities/entities mentioned below. The Borrower understands that as a pre-condition, relating to grant of the loans/advances/other non-fund-based credit facilities provided to the Borrower, the Lender requires the Borrower's consent for the disclosure by the Lender of, information and data relating to the Borrower, of the credit facility availed of/to be availed of, by the Borrower, obligations assumed/ to be assumed, by the Borrower, in relation thereto and default, if any, committed by the Borrower, in discharge thereof.

Accordingly, the Borrower hereby agrees and gives consent for disclosure by the Lender of all or any such information and data relating to the Borrower including the information or data relating to any credit facility availed of/ to be availed of, by the Borrower and default, if any, committed by the Borrower, in discharge of the Borrower's such obligation as the Lender may deem appropriate and necessary to disclose and furnish to Credit Information Bureau (India) Limited ("**CIBIL**") or any other agency authorized in this behalf by Reserve Bank of India ("**RBI**").

The Borrower further agrees and gives consent for disclosing / submitting by the Lender the "**financial information**" as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ("**Code**" for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the Credit/ Financial facilities availed from the Lender, to any "**Information Utility**" ("**IU**" for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the Lender from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Lender, as and when requested by the concerned "**IU**".

The Borrower authorizes the Lender to exchange, share all information and details as provided by the Borrower in relation to this loan to any third party including but not limited to its service providers, banks, financial institutions, credit bureaus, telecommunication companies, statutory bodies, etc. for customer verification, personalization of products or services, credit rating, data enrichment, marketing or promotion of the Lender or borrowings of Lender or related products or that of its associates and affiliates or for enforcement of the obligations of the Borrower and the Borrower hereby confirms that the Borrower shall not hold the Lender liable for the use/sharing of the information as stated above. The Borrower further authorizes the Lender's representative to call/SMS the Borrower towards this loan and other products/services. This consent overrides the registration of Borrower for DNC/NDNC. The Borrower hereby consents to the Lender and/or its partners for obtaining and authenticating my "**Know Your Customer**" (KYC) information with relevant authorities (e.g. NSDL, UIDAI, State Transport Dept. etc.), for fulfilling KYC requirements. The Borrower hereby authorizes the Lender to store the personal information required as part of the Agreement which could have been obtained via KYC/e-KYC process of the Borrower in encrypted form for the period of 5 (five) years from the date of termination or expiry of this Agreement.

34) The content of this Agreement has been read out, explained and interpreted to the Borrower, in the vernacular language of the Borrower, Co Borrower and Guarantor and understood by the Borrower, Co-Borrower and the Guarantor at the time of availing the loan and execution of this Agreement, only thereafter the Borrower, Co-Borrower and the Guarantor have put their signature/thumb impression on this Agreement (electronically/ hand). The vernacular translation of terms and conditions of this Agreement shall be available at Lender's website, i.e. www.mahindrafinance.com. In the case of multiple interpretations of any part of this Agreement, English language shall prevail.

IN WITNESS WHEREOF the parties have hereunto set and subscribed to preamble and clauses 1 to 34 on page number 1 to 4 in this Agreement and set their respective hands to this writing on the 29 day of 05 month of 20 25

For Mahindra & Mahindra Financial Services Ltd.

Authorised Signatory

270127 11

Authorised Signatory

(Lender)

For WEVOIS LABS PVT. LTD.

DIRECTOR

WEVOIS LABS PVT LTD

(Name of the Borrower) (Signature of the Borrower)

Abhishek Gupta

(Name of the Co-Borrower) (Signature of the Co-borrower)

(Name of the Co-Borrower) (Signature of the Co-borrower)

(Name of the Co-Borrower) (Signature of the Co-borrower)

Abhinav Sekhar Vasishtha

(Name of the Guarantor) (Signature of the Guarantor)

LOAN APPLICATION NUMBER

750597041

LOAN AGREEMENT

This Loan Agreement (the **"Agreement"**) against loan application number as specified above, is executed on the date as specified at last page of this Agreement between MAHINDRA & MAHINDRA FINANCIAL SERVICES LIMITED, a Company incorporated and registered under the Companies Act, 1956 and having its registered office is at Gateway Building, Apollo Bunder, Mumbai - 400001, Website: www.mahindrafinance.com CIN - L65921MH1991PLC059642 (hereinafter called **"the Lender"**) of the First Part AND Borrower, Co-Borrower hereinafter jointly (if the context so admits) called the **"Borrower"** of the Second Part AND **"Guarantor"** of the Third Part. The Guarantor guarantees due performance and observance of all covenants and terms of this Agreement. The Borrower, Co-Borrower and Guarantor are more so fully specified and described at end of this Agreement. The Sanction Letter/Key Fact Statement (KFS) shall be executed by the parties along with execution of this Agreement. (The expression **"The Lender"** shall, where the context so admits mean and include its successors and assigns and the expression **"Borrower"** and the **"Guarantor"** (herein after collectively called as 'Borrower') depending on whether an individual, firm or company shall, where the context so admits, mean its/his/her legal heirs, executors and administrators, assigns and successors in interest.

Whereas the Borrower has approached the Lender, seeking financial assistance for purchase of new vehicle/equipment & accessories/used vehicle/used vehicle equipment & accessories **("Asset")**, more so fully described in Sanction Letter/KFS to this Agreement. The Borrower has identified the Asset, dealer/seller/registered owner, type, model and make of the Asset and after evaluating its usability, value, make model and relevant documents, requested the Lender for a loan for purchasing the said Asset.

WHEREAS the Lender having considered the request of the Borrower and after evaluating the relevant papers, documents including the credentials of the Borrower has agreed to provide a loan subject to the terms and conditions of this Agreement and such other terms as the Lender deems fit.

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1) The Lender based on the Borrower's request, representations, warranties, covenants and undertakings as contained herein and in the application for loan and other documents executed or tendered by the Borrower in relation to the loan, hereby lends and the Borrower hereby borrows a loan amount more specifically mentioned in Sanction Letter/KFS and/or Schedule of charges (hereinafter referred as Schedule of charges), on the terms and conditions contained herein, for purchasing the Asset which is more specifically mentioned in Sanction Letter/KFS. Schedule of charges shall be provided to the Borrower by the Lender upon execution of the Agreement and shall also be detailed in the website of the Lender i.e. www.mahindrafinance.com. The terms mentioned in Sanction Letter/KFS and Schedule of charges shall be read together with this Agreement and shall form part and parcel of this Agreement.

2) Borrower hereby agrees, accepts and acknowledges that it is the absolute choice of the Borrower in determining the Asset including the colour, make, model, value and the supplier/seller of the same including the decision to buy the Asset and the Lender has no role whatsoever. Borrower further hereby shall hypothecate the said Asset in favor of the Lender and create necessary records in the invoice of the Asset and in case the Asset is a vehicle/equipment, mark the hypothecation in the registration certificate of the vehicle as well and shall submit necessary documents for recording the creation of hypothecation with all concerned authorities. A copy of the same shall be given to the Lender within 15 working days from the date of the delivery.

3) The obligation of the Lender to make a disbursement under this Agreement shall be subject to the Borrower performing all its obligations under the sanction letter and this Agreement and delivery of all the documents and/or evidence, to the satisfaction of the Lender.

4) Borrower further agrees and covenants to pay the margin money being the difference between the sale consideration of the Asset including any charges on account of insurance, registration etc., and the loan amount, directly to the supplier/seller of the Asset and such Asset shall be always subject to hypothecation in favor of the Lender, on Lender disbursing the loan amount either to the supplier or seller in discharge of the Borrower's obligation to pay the sale consideration to the supplier/seller.

5) Borrower further agrees, confirms, and undertakes that the loan shall be considered as disbursed when the loan amount is paid by Lender, to either a dealer and/or to the seller and/ or the Borrower and/or any other party as requested by the Borrower and approved by Lender, in one or multiple instalments. All such payments made by the Lender shall be considered as a debt due and shall be repaid by the Borrower along with applicable interest on their respective due dates and notwithstanding any delay in the delivery of the Asset or getting the Asset registered or installed. Notwithstanding the same, Borrower shall repay the loan amount without any delay in terms of the repayment structure specified in Sanction Letter/KFS and/or Schedule of charges or any other repayment structure, which shall be issued by the Lender, subsequent to the signing of this Agreement and disbursement of the advance and also ensure that the interest of Lender is fully protected to the satisfaction of the Lender and on demand, shall create adequate security.

6) Borrower agrees, accepts and undertakes that the obligation to repay the loan along with interest in Periodical Installments (PI) on the fixed due dates as specified in Sanction Letter/ KFS and/or Schedule of charges either by auto debit advised to Borrower's bankers, net banking transfers, post dated cheques, pay orders, by remittance in cash, UPI/QR or any other permissible mode of payment online or at the nearest branch or to the Lender's representative or to the nearest cash collection center, against valid money receipt issued by the Lender, shall be independent of use of the Asset and shall not be subject to any change on account of any failure of Asset, and its utility. Borrower agrees and undertakes to issue and sign mandate/s for repayment of dues and shall ensure availability of sufficient funds in respective bank accounts on the respective due dates to enable clearance of such mandate when presented by Lender and/or its bankers. The Borrower shall not stop payment of such mandate and/or close the bank account from where such mandates were issued. If the Borrower is compelled to do so, the Borrower agrees to immediately, within 3 working days, send a revised mandate to Lender in the manner prescribed by Lender.

Borrower further agrees that when the payment to the loan account are remitted through payment aggregators/payment gateways or by any third party to the credit of the Borrower's account, all such payments shall be duly authorized by the Borrower and the Borrower shall be solely responsible for the legitimacy of the payment, the source of the payment and shall also hold the Lender indemnified against any claim under any statutory provisions or regulations on account of such third party transfer.

7) Borrower agrees, accepts and acknowledges that time is the essence of the contract and undertakes to pay the instalments on the due dates without fail and on making such payment, Lender shall have the absolute right to appropriate the installment paid towards any charges, **penal charges**, principal or interest at the discretion of the Lender which shall get reflected in the statement of account and such statement of account shall be deemed to be the final statement of account and the Borrower shall accept the same and further agrees to reimburse the Lender with interest any payment made or cost or expenditure incurred by the Lender on account of the Borrower, which otherwise would have been paid/payable by the Borrower.

Borrower further agrees that in the event of Borrower making any payment towards the loan, whether in part or in full, prior to the specified due date(s), the Lender shall not be liable to pay or compensate the Borrower for any interest, or other financial benefits on the amount prepaid. Such prepayment shall be made at free will of the Borrower and shall be applied towards the principal or outstanding dues as determined by Lender's standard policy/process, without any obligation to the Borrower for interest on said prepaid amount.

8) The Borrower agrees to place with the Lender as security Deposit, the sum as mentioned in Sanction Letter / KFS and/or Schedule of charges, on execution of this Agreement and hereby confers an unconditional and absolute lien on the Lender in respect of the security deposit to the Lender and unconditional right to adjust said security deposit to first set off costs incurred in relation to enforcement of this Agreement and then set off delayed payment charges arising out of late remittance of PI due under this Agreement and finally to set off the installments due in the inverse order of maturity. Notwithstanding anything contained in this Agreement, Lender shall have lien over all the Assets, including fixed deposit (if any) of Borrower in Lender's possession and control and right to set off against any monies due to the Lender from the Borrower and to combine all accounts of Borrower for recovery of Lender's dues.

9)The Borrower further agrees and undertakes to pay to the Lender, without prejudice to the rights of the Lender, on or without a demand made by the Lender, any charges fallen due and also pay **penal charges**, at the rate specified in Sanction Letter / KFS and/or Schedule of charges, for the installments that has remained unpaid beyond the due date of the installment and the **penal charges** shall be calculated from the due date till the actual date of payment, on the amount that has remained outstanding beyond due date of PI. The Borrower acknowledges that any sums payable under this Agreement by way of interest, **penal charges**, or foreclosure charges, are reasonable and represent genuine pre-estimates of the loss likely to be incurred by the Lender in the event of non-payment by the Borrower of such sums when due. The Borrower further acknowledges that the charges (other than interest) specified in / Sanction Letter / KFS and/or Schedule of charges are exclusive of tax, duties, levies as applicable and shall be payable additionally over and above the charges prescribed.

10) In the event of the Lender approaching the Borrower for collecting installment dues for whatsoever the reason, Lender shall be entitled to debit the account of the Borrower for collection charges as specified in the Sanction Letter / KFS and/or Schedule of charges for every visit made.

Borrower shall not withhold any payments that are due to the Lender, even on account of any error in the computation of the installment amount or in the computation of the **penal**

charges and agrees that the obligation to pay the installment is absolute and unconditional, however, should there be any discrepancy in the statement of account, Lender agrees to rectify the same, including refund or adjust the money towards the subsequent dues of the Borrower.

11) The Borrower agrees, accepts and undertakes to pay stamp duty charges in relation to this Agreement and shall indemnify Lender against any and all liabilities with respect to, or resulting from delay or omission on the part of the Borrower to pay such applicable stamp duty Borrower further, accepts, and acknowledges that the Lender shall, be entitled to levy any taxes, duties, imposts, rates, as may become applicable to this transaction, consequent to any changes in the regulatory requirements and the same shall come into operation on the effective date stipulated in the said regulation. Borrower further agrees accepts and acknowledges, consequent to the change in the regulatory requirement, should there be any change in the internal process, the Lender shall be at liberty to pass over such charges to the Borrower and debit the Borrower's account under intimation. Should there be any changes in the process on account of a request of the Borrower and such changes involves a cost, the same shall also be debited to the account of the Borrower. All changes in charges/interest shall be prospective other than changes caused by the regulatory requirement which shall be as per the effective date of such regulatory requirement. The Lender shall inform the Borrower about such charges for payment and on such intimation, Borrower shall remit the same without any objection whatsoever. Borrower also agrees and undertakes to correctly inform Lender of all their tax registration details and shall not raise any claim for loss of any claim or credit of such taxes. The Borrower agrees that it is the Borrower's responsibility to provide the correct registration number. In cases where the Borrower fails to furnish Goods and Services Tax (**"GST"**) registration number, the Borrower will be treated as unregistered under GST. The Lender shall not be responsible for verification of GSTIN.

12) Borrower agrees, accepts and acknowledges that the Lender shall be within its legal rights and liberty to levy interest from the date of disbursement of the loan and also to ensure instalment cycles and dates have a fixed schedule, shall calculate interest for the period between the disbursement date and the first instalment date and charge interest at the Annualized Interest rate (AIR) which is to be either paid along with the first instalment date or can be amortized along with loan amount to be repaid along with PI payable, the details of which are specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement and for this purpose, disbursement of the loan date shall be the date of issue of delivery order to the Dealer.

13) The Borrower expressly agrees and covenants that the Borrower shall create the necessary charge/hypothecation in favour of the Lender on the Asset which has been financed by the Lender and also allow inspection of the same at all reasonable times to the Lender or its authorized representative. The Borrower further undertakes and confirms that the Borrower shall not make any alterations in or to the Asset except in the course of ordinary repairs, without prior written permission of the Lender and shall not remove or change or allow to be removed or change the identification numbers on the engine and/or chassis of the Asset or use the accessories except for the purpose of the Agreement. The Borrower further undertakes not to permanently affix or attach the Asset on to any immovable property or otherwise fasten permanently to anything attached to any immovable property so as to make the same as immovable property or properties or as a result of which the Asset is used for beneficial enjoyment of any immovable property. Furthermore, the Borrower agrees that the Lender shall have the right to conduct audits of the Borrower's accounts and records pertaining to the Asset. In the event that an audit report is inconclusive or delayed due to non-cooperation by the Borrower, the Lender reserves the right to determine the status of the account based on the available material and its own internal investigation or assessment. This includes Lender's right to classify the account as fraudulent if deemed necessary.

14) Borrower agrees, accepts, and undertakes to intimate the Lender of any change in his KYC documents or address or mobile number, fax number or email ID or employment or business and/or any change in the premises where the Asset is normally retained, within 10 days from the date of such change.

15) Borrower expressly agrees to keep the charged asset in good working condition, duly covered by a comprehensive insurance policy with all statutory dues duly paid on time, throughout the tenure of the Agreement.

16) Borrower hereby irrevocably appoints the Lender as Borrower's agent for the purpose of receiving all moneys payable under the said policy of insurance, to do all acts for that purpose and give discharge thereof and the Lender may notify the insurers of this condition. It is further clarified that, the Lender is in no way concerned with the merits of any claim lodged by the Borrower with the insurance company in respect of the said Asset, or in case of any such claim being repudiated by the insurance company for any reason whatsoever, and that the privity of contract in respect of the insurance policy shall be between the Borrower and insurance company although subject to the Hypothecation clause as provided for in the policy of insurance.

17) Borrower undertakes not to put the hypothecated Asset for any use that are illegitimate, illegal and contravenes any provision of any law or rule governing the law of land including using the hypothecated Asset for storing or transporting any items or articles which are prohibited and also use or allow the use of Asset as a mode of transportation to perform an act of illegality or an act that shall incite or instigate any kind of social unrest or violence and in such an event, the Borrower shall be responsible for any damage or loss sustained by the Lender, as a result of such wrongful or unlawful use. The Borrower shall indemnify, protect, defend and hold the Lender harmless from and against losses, demands, damages, claims and charges of any/all kinds incurred or suffered by the Lender arising directly or indirectly as a result of or in connection with a breach of the foregoing obligations or any claim or proceedings initiated by any third party against the Lender arising out of or in connection with the foregoing. The Borrower further undertakes to keep the Lender informed about any notice, legal proceedings, or prosecution for any criminal offences against the Borrower by any third party or statutory authorities and in that event, it shall be the discretion of the Lender to terminate this Agreement and demand the full dues.

18) Borrower further acknowledges and accepts that in the event of total loss/theft of the Asset, it shall be the obligation of Borrower to create alternate security to the satisfaction of Lender and continue to repay the loan in terms of this Agreement. In the event of non-creation of any security, at the discretion of Lender, Agreement can be terminated, and Lender shall be entitled to recover all its dues as applicable including foreclosure charges and the consequences of default shall arise.

19) (a) The Borrower shall not, under any circumstances, relocate, transport, or transfer the Asset outside the territorial boundaries of India without obtaining the prior written consent of the Lender. Any such relocation or transfer attempted without the Lender's express written consent shall constitute a material breach of this Agreement and shall render the Borrower immediately liable for all outstanding amounts due under this Agreement, without prejudice to any other rights and remedies available to the Lender under this Agreement or applicable law.

Further, the Borrower may at any time with the prior written consent of the Lender and without any prejudice to the Lender's rights under this Agreement or in law sell or transfer the Asset to any other person within or outside territory of India, subject to such terms and conditions as may be stipulated by the Lender including the following:

(i) the sale/transfer proceeds of the Asset shall be directly remitted to the Lender in cash or by an account payee demand draft/pay order/ cheque by the purchaser/buyer of the Asset or any other permissible mode of payment online. Such payment shall be appropriated towards the satisfaction of the outstanding amount and considered as payment towards discharge of the transferee's obligation to the Borrower.

(ii) the Borrower shall issue a bill of sale and pay applicable taxes (if any) on such sale of Asset to the appropriate authority.

The Borrower acknowledges and confirms that any unauthorized transfer, sale, or relocation of the Asset, or failure to comply with the conditions outlined in the Lender's written consent, shall be void ab initio. Notwithstanding any such transfer or sale, the Borrower shall continue to be indebted to the Lender for any amount remaining outstanding for such appropriation and all remedies available to the Lender as herein given shall survive and the Lender shall be entitled and authorized to exercise its rights herein to recover its dues under this Agreement.

(b) Borrower agrees, accepts, and undertakes that in the event of the Borrower's voluntary surrender of the Asset under this agreement, the Borrower shall deliver the Asset to the branch of MMFSL in which where the Borrower's loan account is parked, at the Borrower's own expense and effort. The Borrower acknowledges and agrees that MMFSL shall bear no responsibility or obligation regarding the transportation, condition, or costs associated with the delivery of the vehicle. The Borrower further undertakes to ensure that the vehicle is delivered in a reasonably good condition, reflecting its use and wear, and with all related documentation, including keys, registration, and any other relevant papers, in order.

20) The Borrower agrees, accepts and acknowledges that the information shared, representations made are all true to the best knowledge and authority of the Borrower and undertakes to keep Lender indemnified against any consequences arising out of any non-disclosure or misrepresentation of facts or beyond the scope and authority of the Borrower.

21) Event of default: An event of default shall occur if the Borrower fails to fulfil any of the terms and conditions of this Agreement.

The event of default shall also occur if it is found that the Borrower has made any false or incorrect representations or warranties or when the Borrower either becomes insolvent or an event of insolvency has been initiated against the Borrower or is wound up by any court of Law or is subject to any criminal prosecution on account of any illegal activities or violation of any rules or regulations or there exist any circumstances which in the opinion of Lender jeopardizes Lender 's interest or security or if the financial condition of the Borrower in the opinion of the Lender has deteriorated or in the event of the Borrower not providing additional security on demand by the Lender or upon death of the Borrower.

22) **Consequences upon event of default:**

Upon occurrence of any event of default and any time thereafter, the Lender shall be entitled to terminate the Agreement, recall the entire loan amount including all overdue instalments along with **penal charges** and the outstanding principal along with **foreclosure charges** as prescribed in Sanction Letter/KFS and/or Schedule of charges to this Agreement and shall

also be entitled to demand any taxes, charges and cost incurred by the Lender in connection with recovery of the loan amount including cost incurred on conveyance, travel, yard parking charges and any other cost incidental to the efforts by the Lender to recover its dues from the Borrower including legal cost.

The Lender shall also be entitled to invoke any or all of the following:

(i) On termination of the loan, in the event the Borrower doesn't pay the dues as demanded, initiate legal proceedings as applicable in terms of this Agreement to recover the legitimate dues from the Borrower.

(ii) Enforce its security, take custody of the hypothecated asset by giving 10 days written notice in advance to the Borrower and in the event of the Borrower failing to pay the recalled loan, take custody of the hypothecated asset from the Borrower or from the person in whose possession the hypothecated asset is. However, if the Lender has an apprehension that hypothecated asset is likely to be dismantled or disposed of or put to illegal use and circumstances in the view of the Lender does not warrant a notice in advance, the Lender shall be entitled to dispense with the notice and take custody of the hypothecated asset and on taking such custody, shall also intimate the Borrower about the same and demand the dues;

(iii) Value the hypothecated asset and bring the asset for sale either by way of private or public auction and before effecting the sale give one more opportunity to the Borrower by giving 7 days' written notice in advance to clear the dues. In the event the Borrower pays the dues so demanded, Lender shall return the Asset by informing the Borrower and issuing a release order to the yard maintaining authority to release the Asset to the Borrower. In the event of non - payment in terms of notice so issued, Lender shall be at liberty to sell the hypothecated Asset on **"as is where is"** condition either by way of e-auction/bids/tender/by way of private auction as it deems fit and appropriate the sale proceeds towards the dues payable by the Borrower and for any shortfall, shall initiate further appropriate recovery proceedings to secure the interest of the Lender. However, if sale of Asset realizes more amount than the dues of the Borrower, excess amount shall be refunded to the Borrower by Lender.

The rights, powers, and remedies available to the Lender under Law and under this Agreement, shall be exercised by the Lender through any of its employees or agent and the Lender may delegate any or all of the said powers and authorities to such employee or agent.

Notwithstanding anything above, it shall be the right of the Lender to seek all legal recourse in terms of applicable laws to ensure the legitimate interest of the Lender is always protected.

It is agreed and covenanted by the Borrower that the right of the Lender to recover the amount due and payable in terms of the Agreement including recovering any cost incurred under any head along with applicable interest in terms of the Agreement, shall survive termination of the Agreement and the Lender shall be entitled to take all necessary and applicable legal measures to ensure that the legitimate dues of the Lender are recovered from the Borrower.

23) **Foreclosure:**

The Borrower may, if the Borrower so desires, subject to the approval of the Lender in writing, foreclose the loan before the end of the tenure of the Agreement, on payment of all overdue instalments, charges, overdue charges and the outstanding principal on the foreclosure date along with **foreclosure charges** as specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement.

24) This Agreement is personal to the Borrower and Borrower's right and/or obligations shall not be assignable or chargeable by the Borrower directly or indirectly without the prior written consent of the Lender.

25) The Guarantor in consideration of the Lender agreeing to grant this loan to the Borrower further agrees declares and guarantees as under:

a. The Borrower shall observe and perform the terms and conditions of this Agreement and shall pay on demand all monies due or which may become due under this Agreement by way of PI, interest, damages, cost, charges **penal charges**, expenses or taxes / levies and if the Borrower makes any default in observance and performance of any of the terms and conditions or payment of any monies due and payable hereunder, the Guarantor shall forthwith on demand, pay to the Lender such monies which are due and payable by Borrower along with applicable interest charges till the date of payment calculated from the date of payment was due, failing which the consequence of default shall get triggered.

b. The Lender shall be at liberty to make variations in this Agreement or in any terms and conditions thereof including manner of the payment of PI or to enter into any arrangement with the Borrower or to show any indulgence or to give time or not to sue, without in any way affecting the liability of the Guarantor and the Guarantor hereby agrees that the Guarantor shall not be discharged from the liability hereunder by the Lender releasing the Borrower or any of the security it may hold by any act of omission or commission, the legal consequences whereof may otherwise have been to discharge the Guarantor.

c. A notice of demand by the Lender against the Borrower shall be the final and conclusive evidence that the Borrower has committed a default and that the monies and the amount claimed there under is due and payable by the Borrower to the Lender and the Guarantor shall not be entitled to challenge the notice on the ground that no default has been committed or the amount mentioned therein as due and payable is not payable or no separate demand of notice has been issued against him or on any other ground.

d. This guarantee shall not be affected by the death, insolvency or winding up of the Borrower.

e. The Lender shall be at liberty to sue the Borrower and/or the Co-Borrower and / or the / Guarantor jointly and / or severally or shall be entitled to proceed against the Co-Borrower / Guarantor only in the first instance.

f. The indemnities/guarantees contained herein shall remain in full force and effect for the entire period of the Agreement and shall survive the termination by the Borrower or the cancellation of the loan or this Agreement in so far as they relate to events which occurred during the period of the aforesaid Agreement or any extension hereof.

26) **Securitization/Assignment:**

The Borrower expressly recognizes and accepts that the Lender shall be absolutely entitled and have full power and authority to sell, assign or transfer this loan account in any manner, in whole or in part, and in such manner and on such terms as the Lender may decide. However, in such an event, there shall be no additional liability or obligation to the Borrower other than what is specifically mentioned in this Agreement and the assignee shall be entitled to all the rights and authority as a Lender.

The right of sale, transfer, assignment or securitization and to create security interest shall be available not only with respect to the loan or part thereof but also with respect to the security interest created by the Borrower and such sale, transfer, assignment, or securitization may be made in respect of the loan with or without security interest or may be made only with respect to security interest and such sale, transfer, assignment or securitization of the loan or part thereof may be made in favour of one person and sale, transfer or assignment of security interest may be made in favour of other person whether as a transferee, assignee or purchaser or as trustee holding in trust for and for the benefit of the persons to whom the loan or part thereof maybe sold, transferred, assigned or securitized and such sale, transfer, and assignment may be made by the Lender not only in respect of its right, title, interest and benefit under this Agreement but also under any other loan documents.

Without prejudice to the generality of the foregoing, in the event Lender avails loan assistance from banks, it shall be entitled to secure the loan assistance so availed/ to be availed by it by creating a charge, mortgage or other interest in the security obtained by Lender from the security providers against the loan. The security providers permit Lender to transfer its interest in the security in favour of banks and financial institutions. The Borrower irrevocably and unconditionally confirms that the Borrower shall continue to be bound by the terms of the loan documents and the other documents in relation to the loan notwithstanding such transfer or assignment by the Lender.

27) **Cross liability:**

The Borrower hereby agrees, accepts and acknowledges that Borrower shall not be entitled to seek NOC or No Dues Certificate, even on completion of all the obligations arising out of this Agreement in the event of any liability which is fallen due or which is likely to fall due on account of any other loan liability which is existing by virtue of any other Agreement executed by the Borrower with the Lender either in the capacity as a Borrower, Co-Borrower or as a Guarantor and further acknowledges and accepts that the Lender shall be entitled to withhold the release of hypothecation unless and until all the dues and liabilities are fully settled in terms of all such agreements executed by the Borrower and still remaining undischarged.

The Borrower expressly accepts that if the Borrower fails to pay any monies when due or which may be declared due prior to the date when it would otherwise have become due or commits any other default under any agreement (including this Agreement or any other agreement with any of the Group Company as defined by the Companies Act, 2013, as amended and modified from time to time) with the Lender under which the Borrower is enjoying any financial/other facility, then in such event the Lender shall, without prejudice to any of its specific rights under each of the agreements, be absolutely entitled to hold issue of no dues certificate or no objection certificate in respect of this Agreement. Notwithstanding, all the dues arising out of this Agreement are to be paid in full.

28) **Notice:**

Any notices/communications addressed to the Lender shall be sent at Lender's correspondence address - 302, Amiti Building, Agastya Corporate Park, Opposite Fire Brigade station, LBS Road, Kamani Junction, Kurla West, Mumbai - 400 070.

All notices sent by Lender to Borrower under this Agreement shall be in writing and shall be deemed to have been duly served on dispatch by registered post or by an electronic mail sent to the registered e-mail ID of the Borrower or SMS or WhatsApp or text message to the registered mobile number of the Borrower or delivered in person to the Borrower and duly acknowledged by the Borrower, however in case of delivery by any instant messaging services, simultaneous service by e-mail shall be effected.

29) Grievance Redressal

For any grievance ,the Borrower may opt to write to: Grievance Redressal Officer, Mahindra & Mahindra Financial Services Ltd, 3rd floor, Agastya Corporate Park, Piramal Amity building, Kurla (W), Mumbai 400022, Email ID grievanceredressal_mmfsl@mahindra.com or website at https://www.mahindrafinance.com/customer-service.

30) Arbitration:

All disputes, differences and/or claim arising out of these presents or in any way touching or concerning the same or as to constructions, meaning or effect hereof or as to the right and liabilities of the parties hereunder shall be settled by arbitration to be held in accordance with the provision of the Arbitration and Conciliation Act, 1996 or any statutory amendments thereof and shall be referred to the sole arbitrator to be appointed by the Lender. In such a case, the Borrower shall have the right to convey their acceptance/non acceptance of the appointment of sole arbitrator within 10 days from the date of appointment of the sole arbitrator with valid reasons for objection. In the absence of any written communication either by Registered post or by an email to the sole arbitrator so appointed, it shall be deemed to be an acceptance of the appointment of arbitrator. In the event of death, refusal, neglect, inability, or incapability of a person so appointed to act as an arbitrator, the Lender may appoint a new arbitrator. The arbitrator shall not be required to give any reasons for the award and the award of the arbitrator shall be final and binding on all parties concerned. The arbitration proceeding shall be held at any of the locations viz Mumbai/Thane/Delhi/Chennai/Kolkata. Notice of invocation, commencement and the hearings of arbitration proceedings shall be communicated to the Borrower by Registered Post at the last known address provided to the Lender and/or by an email to the registered email id of the Borrower and/or also by WhatsApp message to the registered mobile number of the Borrower. The arbitration proceedings shall be held in person/video conferencing as may be decided by the Arbitral Tribunal and communicated accordingly. Parties to the proceedings shall also submit their claim, pleadings, counters, rejoinders by a Registered Post to the Arbitral Tribunal. Arbitration proceedings shall be only in English language. All correspondence with respect to online arbitration shall also be sent to the registered address of the Borrower and shall be deemed to have been sent on dispatch of such communication.

31) Jurisdiction:

It is agreed by and between the parties hereto that subject to above Arbitration clause, the Courts of competent jurisdiction shall have jurisdiction in respect of any matter, claims or dispute arising out of or in any way relating to these presents or to anything to be done under and pursuant to these presents or of any clause or provision thereof.

32) Sharing of Data:

The Borrower hereby agrees with and authorizes the Lender and all of its divisions, affiliates, holding company, subsidiaries, joint ventures, related parties and other Mahindra group companies (collectively the "**Mahindra Entities**") accessing/to access the Borrower's basic data/contact details provided herewith, i.e., the name, address, telephone number(s), e-mail address(es), birth date and/or anniversary date of the Borrower. The Borrower hereby consents to, agrees and acknowledges that any of the Mahindra Entities may call/email/SMS the Borrower on any of the basic contact details shared by the Borrower, in order to assist with the Borrower's loan or to keep the Borrower informed regarding the Asset details, or to send the Borrower any marketing and other Asset or service- related communication and other offers of any of the Mahindra Entities. The Borrower acknowledges that it has provided the details herein at its sole discretion and confirms that no Mahindra Entity shall be held responsible or liable for any claim arising out of accessing or using its basic data / contact details shared by the Borrower. The Borrower consents to being assigned a unique identity within the Mahindra Group, to be shared amongst all Mahindra Entities. The Borrower shall withdraw Borrower's consent by sending a written communication to the Lender at the Lender's correspondence address, through registered post.

33) Disclosures by Lender and Consent of Borrower

The Lender shall have a right to disclose the names and particulars of the Borrower and the credit facilities availed of/to be availed, by the Borrower to the authorities/entities mentioned below. The Borrower understands that as a pre-condition, relating to grant of the loans/advances/other non-fund-based credit facilities provided to the Borrower, the Lender requires the Borrower's consent for the disclosure by the Lender of information and data relating to the Borrower, of the credit facility availed of/to be availed of, by the Borrower, obligations assumed/ to be assumed, by the Borrower, in relation thereto and default, if any, committed by the Borrower, in discharge thereof.

Accordingly, the Borrower hereby agrees and gives consent for disclosure by the Lender of all or any such information and data relating to the Borrower including the information or data relating to any credit facility availed of/ to be availed of, by the Borrower and default, if any, committed by the Borrower, in discharge of the Borrower's such obligation as the Lender may deem appropriate and necessary, to disclose and furnish to Credit Information Bureau (India) Limited ("CIBIL") or any other agency authorized in this behalf by Reserve Bank of India ("RBI").

The Borrower further agrees and gives consent for disclosing / submitting by the Lender, the '**financial information**' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('**Code**' for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the Credit/ Financial facilities availed from the Lender, to any '**Information Utility**' ('**IU**' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the Lender from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Lender, as and when requested by the concerned '**IU**'.

The Borrower authorizes the Lender to exchange, share all information and details as provided by the Borrower in relation to this loan to any third party including but not limited to its service providers, banks, financial institutions, credit bureaus, telecommunication companies, statutory bodies, etc. for customer verification, personalization of products or services, credit rating, data enrichment, marketing or promotion of the Lender or borrowings of Lender or related products or that of its associates and affiliates or for enforcement of the obligations of the Borrower and the Borrower hereby confirms that the Borrower shall not hold the Lender liable for the use/sharing of the information as stated above. The Borrower further authorizes the Lender's representative to call/SMS the Borrower towards the loan and other products/services. This consent overrides the registration of Borrower for DNC/NDNC. The Borrower hereby consents to the Lender and/or its partners for obtaining and authenticating my "**Know Your Customer**" (KYC) information with relevant authorities (e.g. NSDL, UIDAI, State Transport Dept. etc.) for fulfilling KYC requirements. The Borrower hereby authorizes the Lender to store the personal information required as part of the Agreement which could have been obtained via KYC/eKYC process of the Borrower in encrypted form for the period of 5 (five) years from the date of termination or expiry of this Agreement.

34) The content of this Agreement has been read out, explained, and interpreted to the Borrower, in the vernacular language of the Borrower, Co-Borrower and Guarantor and understood by the Borrower, Co-Borrower and the Guarantor at the time of availing the loan and execution of this Agreement, only thereafter the Borrower, Co-Borrower and the Guarantor have put their signature/thumb impression on this Agreement (electronically/ hand). The vernacular translation of terms and conditions of this Agreement shall be available at Lender's website, i.e. www.mahindrafinance.com. In the case of multiple interpretations of any part of this Agreement, English language shall prevail.

IN WITNESS WHEREOF the parties have hereunto set and subscribed to preamble and clauses 1 to 34 on page number 1 to 4 in this Agreement and set their respective hands to this writing on this 31 day of 05 month of 2025.

For Mahindra & Mahindra Financial Services Ltd.

Authorised Signatory

27012711

Authorised Signatory

(Lender)

For WEVOIS LABS PVT. LTD.

Wevois Labs Pvt. ltd.

(Name of the Borrower)

(Signature of the Borrower)

DIRECTOR

Abhishek Gupta

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

Abhinav SHEKHAR

(Name of the Guarantor)

(Signature of the Guarantor)

780900 5552

LOAN APPLICATION NUMBER

LOAN AGREEMENT

This Loan Agreement (the **"Agreement"**) against loan application number as specified above, is executed on the date as specified at last page of this Agreement between MAHINDRA & MAHINDRA FINANCIAL SERVICES LIMITED, a Company incorporated and registered under the Companies Act, 1956 and having its registered office is at Gateway Building, Apollo Bunder, Mumbai - 400001, Website www.mahindrafinance.com CIN - L65921MH1991PLC059642 (hereinafter called **"the Lender"**) of the First Part AND Borrower, Co-Borrower hereinafter jointly (if the context so admits) called the **"Borrower"** of the Second Part AND **"Guarantor"** of the Third Part. The Guarantor guarantees due performance and observance of all covenants and terms of this Agreement. The Borrower, Co-Borrower and Guarantor are more so fully specified and described at end of this Agreement. The Sanction Letter/Key Fact Statement (KFS) shall be executed by the parties along with execution of this Agreement. (The expression **"The Lender"** shall, where the context so admits mean and include its successors and assigns and the expression **"Borrower"** and the **"Guarantor"** (herein after collectively called as 'Borrower') depending on whether an individual, firm or company shall, where the context so admits, mean its/his/her legal heirs, executors and administrators, assigns and successors in interest.

Whereas the Borrower has approached the Lender, seeking financial assistance for purchase of new vehicle/equipment & accessories/used vehicle/used vehicle equipment & accessories (**"Asset"**), more so fully described in Sanction Letter/KFS to this Agreement. The Borrower, has identified the Asset, dealer/seller/registered owner, type, model and make of the Asset and after evaluating its usability, value, make model and relevant documents, requested the Lender for a loan for purchasing the said Asset.

WHEREAS the Lender having considered the request of the Borrower and after evaluating the relevant papers, documents including the credentials of the Borrower has agreed to provide a loan subject to the terms and conditions of this Agreement and such other terms as the Lender deems fit.

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1) The Lender based on the Borrower's request, representations, warranties, covenants and undertakings as contained herein and in the application for loan and other documents executed or tendered by the Borrower in relation to the loan, hereby lends, and the Borrower hereby borrows a loan amount more specifically mentioned in Sanction Letter/KFS and/or Schedule of charges (hereinafter referred as Schedule of charges), on the terms and conditions contained herein, for purchasing the Asset which is more specifically mentioned in Sanction Letter/KFS. Schedule of charges shall be provided to the Borrower by the Lender upon execution of the Agreement and shall also be detailed in the website of the Lender i.e. www.mahindrafinance.com. The terms mentioned in Sanction Letter/KFS and Schedule of charges shall be read together with this Agreement and shall form part and parcel of this Agreement.

2) Borrower hereby agrees, accepts and acknowledges that it is the absolute choice of the Borrower in determining the Asset including the colour, make, model, value and the supplier/seller of the same including the decision to buy the Asset and the Lender has no role whatsoever. Borrower further hereby shall hypothecate the said Asset in favor of the Lender and create necessary records in the invoice of the Asset and in case the Asset is a vehicle/equipment, mark the hypothecation in the registration certificate of the vehicle as well, and shall submit necessary documents for recording the creation of hypothecation with all concerned authorities. A copy of the same shall be given to the Lender within 15 working days from the date of the delivery.

3) The obligation of the Lender to make a disbursement under this Agreement shall be subject to the Borrower performing all its obligations under the sanction letter and this Agreement and delivery of all the documents and/or evidence, to the satisfaction of the Lender.

4) Borrower further agrees and covenants to pay the margin money being the difference between the sale consideration of the Asset including any charges on account of insurance, registration etc., and the loan amount, directly to the supplier/seller of the Asset and such Asset shall be always subject to hypothecation in favor of the Lender, on Lender disbursing the loan amount either to the supplier or seller in discharge of the Borrower's obligation to pay the sale consideration to the supplier/seller.

5) Borrower further agrees, confirms, and undertakes that the loan shall be considered as disbursed when the loan amount is paid by Lender, to either a dealer and/or to the seller and/or the Borrower and/or any other party as requested by the Borrower and approved by Lender, in one or multiple instalments. All such payments made by the Lender shall be considered as a debt due and shall be repaid by the Borrower along with applicable interest on their respective due dates and notwithstanding any delay in the delivery of the Asset or getting the Asset registered or installed. Notwithstanding the same, Borrower shall repay the loan amount without any delay in terms of the repayment structure specified in Sanction Letter/KFS and/or Schedule of charges or any other repayment structure, which shall be issued by the Lender, subsequent to the signing of this Agreement and disbursement of the advance and also ensure that the interest of Lender is fully protected to the satisfaction of the Lender and on demand, shall create adequate security.

6) Borrower agrees, accepts and undertakes that the obligation to repay the loan along with interest in Periodical Instalments (PI), on the fixed due dates as specified in Sanction Letter/KFS and/or Schedule of charges, either by auto debit advised to Borrower's bankers, net banking transfers, post-dated cheques, pay orders, by remittance in cash, UPI/QR or any other permissible mode of payment online or at the nearest branch or to the Lender's representative or to the nearest cash collection center, against valid money receipt issued by the Lender, shall be independent of use of the Asset and shall not be subject to any change on account of any failure of Asset, and its utility. Borrower agrees and undertakes to issue and sign mandate/s for repayment of dues and shall ensure availability of sufficient funds in respective bank accounts on the respective due dates to enable clearance of such mandate when presented by Lender and/or its bankers. The Borrower shall not stop payment of such mandate and/or close the bank account from where such mandates were issued. If the Borrower is compelled to do so, the Borrower agrees to immediately, within 3 working days, send a revised mandate to Lender in the manner prescribed by Lender.

Borrower further agrees that when the payment to the loan account are remitted through payment aggregators/payment gateways or by any third party to the credit of the Borrower's account, all such payments shall be duly authorized by the Borrower and the Borrower shall be solely responsible for the legitimacy of the payment, the source of the payment and shall also hold the Lender indemnified against any claim under any statutory provisions or regulations on account of such third party transfer.

7) Borrower agrees, accepts and acknowledges that time is the essence of the contract and undertakes to pay the instalments on the due dates without fail and on making such payment, Lender shall have the absolute right to appropriate the instalment paid towards any charges, **penal charges**, principal or interest at the discretion of the Lender which shall get reflected in the statement of account and such statement of account shall be deemed to be the final statement of account and the Borrower shall accept the same and further agrees to reimburse the Lender with interest any payment made or cost or expenditure incurred by the Lender on account of the Borrower, which otherwise would have been paid/payable by the Borrower.

Borrower further agrees that in the event of Borrower making any payment towards the loan, whether in part or in full, prior to the specified due date(s), the Lender shall not be liable to pay or compensate the Borrower for any interest, or other financial benefits on the amount prepaid. Such prepayment shall be made at free will of the Borrower and shall be applied towards the principal or outstanding dues as determined by Lender's standard policy/process, without any obligation to the Borrower for interest on said prepaid amount.

8) The Borrower agrees to place with the Lender as security Deposit, the sum as mentioned in Sanction Letter / KFS and/or Schedule of charges, on execution of this Agreement and hereby confers an unconditional and absolute lien on the Lender in respect of the security deposit to the Lender and unconditional right to adjust said security deposit to first set off costs incurred in relation to enforcement of this Agreement and then set off delayed payment charges arising out of late remittance of PI due under this Agreement and finally to set off the instalments due in the reverse order of maturity. Notwithstanding anything contained in this Agreement, Lender shall have lien over all the Assets, including fixed deposit (if any) of Borrower in Lender's possession and control and right to set off against any monies due to the Lender from the Borrower and to combine all accounts of Borrower for recovery of Lender's dues.

9)The Borrower further agrees and undertakes to pay to the Lender, without prejudice to the rights of the Lender, on or without a demand made by the Lender, any charges fallen due and also pay **penal charges**, at the rate specified in Sanction Letter / KFS and/or Schedule of charges, for the instalments that has remained unpaid beyond the due date of the instalment and the **penal charges** shall be calculated from the due date till the actual date of payment, on the amount that has remained outstanding beyond due date of PI. The Borrower acknowledges that any sums payable under this Agreement by way of interest, **penal charges**, or foreclosure charges, are reasonable and represent genuine pre-estimates of the loss likely to be incurred by the Lender in the event of non-payment by the Borrower of such sums when due. The Borrower further acknowledges that the charges (other than interest) specified in / Sanction Letter / KFS and/or Schedule of charges are exclusive of tax, duties, levies as applicable and shall be payable additionally over and above the charges prescribed.

10) In the event of the Lender approaching the Borrower for collecting instalment dues for whatsoever the reason, Lender shall be entitled to debit the account of the Borrower for collection charges as specified in the Sanction Letter / KFS and/or Schedule of charges for every visit made.

Borrower shall not withhold any payments that are due to the Lender, even on account of any error in the computation of the instalment amount or in the computation of the **penal**

charges and agrees that the obligation to pay the installment is absolute and unconditional, however, should there be any discrepancy in the statement of account, Lender agrees to rectify the same, including refund or adjust the money towards the subsequent dues of the Borrower.

11) The Borrower agrees, accepts and undertakes to pay stamp duty charges in relation to this Agreement and shall indemnify Lender against any and all liabilities with respect to, or resulting from delay or omission on the part of the Borrower to pay such applicable stamp duty Borrower further, accepts, and acknowledges that the Lender shall be entitled to levy any taxes, duties, imposts, rates, as may become applicable to this transaction, consequent to any changes in the regulatory requirements and the same shall come into operation on the effective date stipulated in the said regulation. Borrower further agrees accepts and acknowledges, consequent to the change in the regulatory requirement, should there be any change in the internal process, the Lender shall be at liberty to pass over such charges to the Borrower and debit the Borrower's account under intimation. Should there be any changes in the process on account of a request of the Borrower and such changes involves a cost, the same shall also be debited to the account of the Borrower. All changes in charges/interest shall be prospective other than changes caused by the regulatory requirement which shall be as per the effective date of such regulatory requirement. The Lender shall inform the Borrower about such charges for payment and on such intimation, Borrower shall remit the same without any objection whatsoever. Borrower also agrees and undertakes to correctly inform Lender of all their tax registration details and shall not raise any claim for loss of any claim or credit of such taxes. The Borrower agrees that it is the Borrower's responsibility to provide the correct registration number. In cases where the Borrower fails to furnish Goods and Services Tax ("GST") registration number, the Borrower will be treated as unregistered under GST. The Lender shall not be responsible for verification of GSTIN.

12) Borrower agrees, accepts and acknowledges that the Lender shall be within its legal rights and liberty to levy interest from the date of disbursement of the loan and also to ensure instalment cycles and dates have a fixed schedule, shall calculate interest for the period between the disbursement date and the first instalment date and charge interest at the Annualized interest rate (AIR) which is to be either paid along with the first instalment date or can be amortized along with loan amount to be repaid along with PI payable, the details of which are specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement and for this purpose, disbursement of the loan date shall be the date of issue of delivery order to the Dealer.

13) The Borrower expressly agrees and covenants that the Borrower shall create the necessary charge/hypothecation in favour of the Lender on the Asset which has been financed by the Lender and also allow inspection of the same at all reasonable times to the Lender or its authorized representative. The Borrower further undertakes and confirms that the Borrower shall not make any alterations in or to the Asset except in the course of ordinary repairs, without prior written permission of the Lender and shall not remove or change or allow to be removed or change the identification numbers on the engine and/or chassis of the Asset or use the accessories except for the purpose of the Agreement. The Borrower further undertakes not to permanently affix or attach the Asset on to any immovable property or otherwise fasten permanently to anything attached to any immovable property so as to make the same as immovable property or properties or as a result of which the Asset is used for beneficial enjoyment of any immovable property. Furthermore, the Borrower agrees that the Lender shall have the right to conduct audits of the Borrower's accounts and records pertaining to the Asset. In the event that an audit report is inconclusive or delayed due to non-cooperation by the Borrower, the Lender reserves the right to determine the status of the account based on the available material and its own internal investigation or assessment. This includes Lender's right to classify the account as fraudulent if deemed necessary.

14) Borrower agrees, accepts, and undertakes to intimate the Lender of any change in his KYC documents or address or mobile number, fax number or email ID or employment or business and/or any change in the premises where the Asset is normally retained, within 10 days from the date of such change.

15) Borrower expressly agrees to keep the charged asset in good working condition, duly covered by a comprehensive insurance policy with all statutory dues duly paid on time, throughout the tenure of the Agreement.

16) Borrower hereby irrevocably appoints the Lender as Borrower's agent for the purpose of receiving all moneys payable under the said policy of insurance, to do all acts for that purpose and give discharge thereof and the Lender may notify the insurers of this condition. It is further clarified that the Lender is in no way concerned with the merits of any claim lodged by the Borrower with the insurance company in respect of the said Asset, or in case of any such claim being repudiated by the insurance company for any reason whatsoever, and that the privity of contract in respect of the insurance policy shall be between the Borrower and insurance company although subject to the Hypothecation clause as provided for in the policy of insurance.

17) Borrower undertakes not to put the hypothecated Asset for any use that are illegitimate, illegal and contravenes any provision of any law or rule governing the law of land including using the hypothecated Asset for storing or transporting any items or articles which are prohibited and also use or allow the use of Asset as a mode of transportation to perform an act of illegality or an act that shall incite or instigate any kind of social unrest or violence and in such an event, the Borrower shall be responsible for any damage or loss sustained by the Lender, as a result of such wrongful or unlawful use. The Borrower shall indemnify, protect, defend and hold the Lender harmless from and against losses, demands, damages, claims and charges of any/all kinds incurred or suffered by the Lender arising directly or indirectly as a result of or in connection with a breach of the foregoing obligations or any claim or proceedings initiated by any third party against the Lender arising out of or in connection with the foregoing. The Borrower further undertakes to keep the Lender informed about any notice, legal proceedings, or prosecution for any criminal offences against the Borrower by any third party or statutory authorities and in that event, it shall be the discretion of the Lender to terminate this Agreement and demand the full dues.

18) Borrower further acknowledges and accepts that in the event of total loss/theft of the Asset, it shall be the obligation of Borrower to create alternate security to the satisfaction of Lender and continue to repay the loan in terms of this Agreement. In the event of non-creation of any security, at the discretion of Lender, Agreement can be terminated, and Lender shall be entitled to recover all its dues as applicable including foreclosure charges and the consequences of default shall arise.

19) (a) The Borrower shall not, under any circumstances, relocate, transport, or transfer the Asset outside the territorial boundaries of India without obtaining the prior written consent of the Lender. Any such relocation or transfer attempted without the Lender's express written consent shall constitute a material breach of this Agreement and shall render the Borrower immediately liable for all outstanding amounts due under this Agreement, without prejudice to any other rights and remedies available to the Lender under this Agreement or applicable law.

Further, the Borrower may at any time with the prior written consent of the Lender and without any prejudice to the Lender's rights under this Agreement or in law sell or transfer the Asset to any other person within or outside territory of India, subject to such terms and conditions as may be stipulated by the Lender including the following:

(i) the sale/transfer proceeds of the Asset shall be directly remitted to the Lender in cash or by an account payee demand draft/pay order/ cheque by the purchaser/buyer of the Asset or any other permissible mode of payment online. Such payment shall be appropriated towards the satisfaction of the outstanding amount and considered as payment towards discharge of the transferee's obligation to the Borrower.

(ii) the Borrower shall issue a bill of sale and pay applicable taxes (if any) on such sale of Asset to the appropriate authority.

The Borrower acknowledges and confirms that any unauthorized transfer, sale, or relocation of the Asset, or failure to comply with the conditions outlined in the Lender's written consent, shall be void ab initio. Notwithstanding any such transfer or sale, the Borrower shall continue to be indebted to the Lender for any amount remaining outstanding for such appropriation and all remedies available to the Lender as herein given shall survive and the Lender shall be entitled and authorized to exercise its rights herein to recover its dues under this Agreement.

(b) Borrower agrees, accepts, and undertakes that in the event of the Borrower's voluntary surrender of the Asset under this agreement, the Borrower shall deliver the Asset to the branch of MMFSL in which where the Borrower's loan account is parked, at the Borrower's own expense and effort. The Borrower acknowledges and agrees that MMFSL shall bear no responsibility or obligation regarding the transportation, condition, or costs associated with the delivery of the vehicle. The Borrower further undertakes to ensure that the vehicle is delivered in a reasonably good condition, reflecting its use and wear, and with all related documentation, including keys, registration, and any other relevant papers, in order.

20) The Borrower agrees, accepts and acknowledges that the information shared, representations made are all true to the best knowledge and authority of the Borrower and undertakes to keep Lender indemnified against any consequences arising out of any non-disclosure or misrepresentation of facts or beyond the scope and authority of the Borrower.

21) Event of default: An event of default shall occur if the Borrower fails to fulfil any of the terms and conditions of this Agreement.

The event of default shall also occur if it is found that the Borrower has made any false or incorrect representations or warranties or when the Borrower either becomes insolvent or an event of insolvency has been initiated against the Borrower or is wound up by any court of Law or is subject to any criminal prosecution on account of any illegal activities or violation of any rules or regulations or there exist any circumstances which in the opinion of Lender jeopardizes Lender's interest or security or if the financial condition of the Borrower in the opinion of the Lender has deteriorated or in the event of the Borrower not providing additional security on demand by the Lender or upon death of the Borrower.

22) **Consequences upon event of default:**

Upon occurrence of any event of default and any time thereafter, the Lender shall be entitled to terminate the Agreement, recall the entire loan amount including all overdue installments along with **penal charges** and the outstanding principal along with **foreclosure charges** as prescribed in Sanction Letter/KFS and/or Schedule of charges to this Agreement and shall

also be entitled to demand any taxes, charges and cost incurred by the Lender in connection with recovery of the loan amount including cost incurred on conveyance, travel, yard parking charges and any other cost incidental to the efforts by the Lender to recover its dues from the Borrower including legal cost.

The Lender shall also be entitled to invoke any or all of the following:

(i) On termination of the loan, in the event the Borrower doesn't pay the dues as demanded, initiate legal proceedings as applicable in terms of this Agreement to recover the legitimate dues from the Borrower.

(ii) Enforce its security, take custody of the hypothecated asset by giving 10 days written notice in advance to the Borrower and in the event of the Borrower failing to pay the recalled loan, take custody of the hypothecated asset from the Borrower or from the person in whose possession the hypothecated asset is. However, if the Lender has an apprehension that hypothecated asset is likely to be dismantled or disposed of or put to illegal use and circumstances in the view of the Lender does not warrant a notice in advance, the Lender shall be entitled to dispense with the notice and take custody of the hypothecated asset and on taking such custody, shall also intimate the Borrower about the same and demand the dues;

(iii) Value the hypothecated asset and bring the asset for sale either by way of private or public auction and before effecting the sale, give one more opportunity to the Borrower by giving 7 days' written notice in advance to clear the dues. In the event the Borrower pays the dues so demanded, Lender shall return the Asset by informing the Borrower and issuing a release order to the yard maintaining authority to release the Asset to the Borrower. In the event of non - payment in terms of notice so issued, Lender shall be at liberty to sell the hypothecated Asset on **"as is where is"** condition either by way of e-auction/bids/tender/by way of private auction as it deems fit and appropriate the sale proceeds towards the dues payable by the Borrower and for any shortfall, shall initiate further appropriate recovery proceedings to secure the interest of the Lender. However, if sale of Asset realizes more amount than the dues of the Borrower, excess amount shall be refunded to the Borrower by Lender.

The rights, powers, and remedies available to the Lender under Law and under this Agreement, shall be exercised by the Lender through any of its employees or agent and the Lender may delegate any or all of the said powers and authorities to such employee or agent.

Notwithstanding anything above, it shall be the right of the Lender to seek all legal recourse in terms of applicable laws to ensure the legitimate interest of the Lender is always protected.

It is agreed and covenanted by the Borrower that the right of the Lender to recover the amount due and payable in terms of the Agreement including recovering any cost incurred under any head along with applicable interest in terms of the Agreement, shall survive termination of the Agreement and the Lender shall be entitled to take all necessary and applicable legal measures to ensure that the legitimate dues of the Lender are recovered from the Borrower.

23) **Foreclosure:**

The Borrower may, if the Borrower so desires, subject to the approval of the Lender in writing, foreclose the loan before the end of the tenure of the Agreement, on payment of all overdue installments, charges, overdue charges and the outstanding principal on the foreclosure date along with **foreclosure charges** as specified in Sanction Letter/KFS and/or Schedule of charges to this Agreement.

24) This Agreement is personal to the Borrower and Borrower's right and/or obligations shall not be assignable or chargeable by the Borrower directly or indirectly without the prior written consent of the Lender.

25) The Guarantor in consideration of the Lender agreeing to grant this loan to the Borrower further agrees declares and guarantees as under:

a. The Borrower shall observe and perform the terms and conditions of this Agreement and shall pay on demand all monies due or which may become due under this Agreement by way of PI, interest, damages, cost, charges **penal charges**, expenses or taxes / levies and if the Borrower makes any default in observance and performance of any of the terms and conditions or payment of any monies due and payable hereunder, the Guarantor shall forthwith on demand pay to the Lender such monies which are due and payable by Borrower along with applicable interest charges till the date of payment calculated from the date of payment was due, failing which the consequence of default shall get triggered.

b. The Lender shall be at liberty to make variations in this Agreement or in any terms and conditions thereof including manner of the payment of PI or to enter into any arrangement with the Borrower or to show any indulgence or to give time or not to sue, without in any way affecting the liability of the Guarantor and the Guarantor hereby agrees that the Guarantor shall not be discharged from the liability hereunder by the Lender releasing the Borrower or any of the security it may hold by any act of omission or commission, the legal consequences whereof may otherwise have been to discharge the Guarantor.

c. A notice of demand by the Lender against the Borrower shall be the final and conclusive evidence that the Borrower has committed a default and that the monies and the amount claimed there under is due and payable by the Borrower to the Lender and the Guarantor shall not be entitled to challenge the notice on the ground that no default has been committed or the amount mentioned therein as due and payable is not payable or no separate demand of notice has been issued against him or on any other ground.

d. This guarantee shall not be affected by the death, insolvency or winding up of the Borrower.

e. The Lender shall be at liberty to sue the Borrower and/or the Co-Borrower and / or the / Guarantor jointly and / or severally or shall be entitled to proceed against the Co-Borrower / Guarantor only in the first instance.

f. The indemnities/guarantees contained herein shall remain in full force and effect for the entire period of the Agreement and shall survive the termination by the Borrower or the cancellation of the loan or this Agreement in so far as they relate to events which occurred during the period of the aforesaid Agreement or any extension hereof.

26) **Securitization/Assignment:**

The Borrower expressly recognizes and accepts that the Lender shall be absolutely entitled and have full power and authority to sell, assign or transfer this loan account in any manner, in whole or in part, and in such manner and on such terms as the Lender may decide. However, in such an event, there shall be no additional liability or obligation to the Borrower other than what is specifically mentioned in this Agreement and the assignee shall be entitled to all the rights and authority as a Lender.

The right of sale, transfer, assignment or securitization and to create security interest shall be available not only with respect to the loan or part thereof but also with respect to the security interest created by the Borrower and such sale, transfer, assignment, or securitization may be made in respect of the loan with or without security interest or may be made only with respect to security interest and such sale, transfer, assignment or securitization of the loan or part thereof may be made in favour of one person and sale, transfer or assignment of security interest may be made in favour of other person whether as a transferee, assignee or purchaser or as trustee holding in trust for and for the benefit of the persons to whom the loan or part thereof maybe sold, transferred, assigned or securitized and such sale, transfer, and assignment may be made by the Lender not only in respect of its right, title, interest and benefit under this Agreement but also under any other loan documents.

Without prejudice to the generality of the foregoing, in the event Lender avails loan assistance from banks, it shall be entitled to secure the loan assistance so availed/ to be availed by it by creating a charge, mortgage or other interest in the security obtained by Lender from the security providers against the loan. The security providers permit Lender to transfer its interest in the security in favour of banks and financial institutions. The Borrower irrevocably and unconditionally confirms that the Borrower shall continue to be bound by the terms of the loan documents and the other documents in relation to the loan notwithstanding such transfer or assignment by the Lender.

27) **Cross liability:**

The Borrower hereby agrees, accepts and acknowledges that Borrower shall not be entitled to seek NOC or No Dues Certificate, even on completion of all the obligations arising out of this Agreement, in the event of any liability which is fallen due or which is likely to fall due on account of any other loan liability which is existing by virtue of any other Agreement executed by the Borrower with the Lender either in the capacity as a Borrower, Co-Borrower or as a Guarantor and further acknowledges and accepts that the Lender shall be entitled to withhold the release of hypothecation unless and until all the dues and liabilities are fully settled in terms of all such agreements executed by the Borrower and still remaining undischarged.

The Borrower expressly accepts that if the Borrower fails to pay any monies when due or which may be declared due prior to the date when it would otherwise have become due or commits any other default under any agreement (including this Agreement or any other agreement with any of the Group Company as defined by the Companies Act, 2013, as amended and modified from time to time) with the Lender under which the Borrower is enjoying any financial/other facility, then in such event the Lender shall, without prejudice to any of its specific rights under each of the agreements, be absolutely entitled to hold issue of no dues certificate or no objection certificate in respect of this Agreement. Notwithstanding, all the dues arising out of this Agreement are to be paid in full.

28) **Notice:**

Any notices/communications addressed to the Lender shall be sent at Lender's correspondence address - 302, Amit Building, Agastya Corporate Park, Opposite Fire Brigade station, LBS Road, Kamani Junction, Kurla West, Mumbai - 400 070.

All notices sent by Lender to Borrower under this Agreement shall be in writing and shall be deemed to have been duly served on dispatch by registered post or by an electronic mail sent to the registered e-mail ID of the Borrower or SMS or WhatsApp or text message to the registered mobile number of the Borrower or delivered in person to the Borrower and duly acknowledged by the Borrower, however in case of delivery by any instant messaging services, simultaneous service by e-mail shall be effected.

29) **Grievance Redressal**

For any grievance ,the Borrower may opt to write to: Grievance Redressal Officer, Mahindra & Mahindra Financial Services Ltd, 3rd floor, Agastya Corporate Park, Piramal Amity Building, Kurla (W), Mumbai 400022, Email ID grievanceredressal_mmfsl@mahindra.com or website at https://www.mahindrafinance.com/customer-service

30) **Arbitration:**

All disputes, differences and/or claim arising out of these presents or in any way touching or concerning the same or as to constructions, meaning or effect hereof or as to the right and liabilities of the parties hereunder shall be settled by arbitration to be held in accordance with the provision of the Arbitration and Conciliation Act, 1996 or any statutory amendments thereof and shall be referred to the sole arbitrator to be appointed by the Lender. In such a case, the Borrower shall have the right to convey their acceptance/non acceptance of the appointment of sole arbitrator within 10 days from the date of appointment of the sole arbitrator with valid reasons for objection. In the absence of any written communication either by Registered post or by an email to the sole arbitrator so appointed, it shall be deemed to be an acceptance of the appointment of arbitrator. In the event of death, refusal, neglect, inability, or incapability of a person so appointed to act as an arbitrator, the Lender may appoint a new arbitrator. The arbitrator shall not be required to give any reasons for the award and the award of the arbitrator shall be final and binding on all parties concerned. The arbitration proceeding shall be held at any of the locations viz Mumbai/Thane/Delhi/Chennai/Kolkata. Notice of invocation, commencement and the hearings of arbitration proceedings shall be communicated to the Borrower by Registered Post at the last known address provided to the Lender and/or by an email to the registered email id of the Borrower and/or also by WhatsApp message to the registered mobile number of the Borrower. The arbitration proceedings shall be held in person/video conferencing as may be decided by the Arbitral Tribunal and communicated accordingly. Parties to the proceedings shall also submit their claim, pleadings, counters, rejoinders by a Registered Post to the Arbitral Tribunal. Arbitration proceedings shall be only in English language. All correspondence with respect to online arbitration shall also be sent to the registered address of the Borrower and shall be deemed to have been sent on dispatch of such communication.

31) **Jurisdiction:**

It is agreed by and between the parties hereto that subject to above Arbitration clause, the Courts of competent jurisdiction shall have jurisdiction in respect of any matter, claims or dispute arising out of or in any way relating to these presents or to anything to be done under and pursuant to these presents or of any clause or provision thereof.

32) **Sharing of Data:**

The Borrower hereby agrees with and authorizes the Lender and all of its divisions, affiliates, holding company, subsidiaries, joint ventures, related parties and other Mahindra group companies (collectively the "**Mahindra Entities**") accessing/to access the Borrower's basic data/contact details provided herewith, i.e., the name, address, telephone number(s), e-mail address(es), birth date and/or anniversary date of the Borrower. The Borrower hereby consents to, agrees and acknowledges that any of the Mahindra Entities may call/email/SMS the Borrower on any of the basic contact details shared by the Borrower, in order to assist with the Borrower's loan or to keep the Borrower informed regarding the Asset details, or to send the Borrower any marketing and other Asset or service related communication and other offers of any of the Mahindra Entities. The Borrower acknowledges that it has provided the details herein at its sole discretion and confirms that no Mahindra Entity shall be held responsible or liable for any claim arising out of accessing or using its basic data / contact details shared by the Borrower. The Borrower consents to being assigned a unique identity within the Mahindra Group, to be shared amongst all Mahindra Entities. The Borrower shall withdraw Borrower's consent by sending a written communication to the Lender at the Lender's correspondence address, through registered post.

33) **Disclosures by Lender and Consent of Borrower**

The Lender shall have a right to disclose the names and particulars of the Borrower and the credit facilities availed of/to be availed, by the Borrower to the authorities/entities mentioned below. The Borrower understands that as a pre-condition, relating to grant of the loans/advances/other non-fund-based credit facilities provided to the Borrower, the Lender requires the Borrower's consent for the disclosure by the Lender of, information and data relating to the Borrower, of the credit facility availed of/to be availed of, by the Borrower, obligations assumed/ to be assumed, by the Borrower, in relation thereto and default, if any, committed by the Borrower, in discharge thereof.

Accordingly, the Borrower hereby agrees and gives consent for disclosure by the Lender of all or any such information and data relating to the Borrower including the information or data relating to any credit facility availed of/ to be availed of, by the Borrower and default, if any, committed by the Borrower, in discharge of the Borrower's such obligation as the Lender may deem appropriate and necessary, to disclose and furnish to Credit Information Bureau (India) Limited (**"CIBIL"**) or any other agency authorized in this behalf by Reserve Bank of India (**"RBI"**).

The Borrower further agrees and gives consent for disclosing / submitting by the Lender, the '**financial information**' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('**Code**' for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the Credit/ Financial facilities availed from the Lender, to any '**Information Utility**' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the Lender from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Lender, as and when requested by the concerned 'IU'.

The Borrower authorizes the Lender to exchange, share all information and details as provided by the Borrower in relation to this loan to any third party including but not limited to its service providers, banks, financial institutions, credit bureaus, telecommunication companies, statutory bodies, etc. for customer verification, personalization of products or services, credit rating, data enrichment, marketing or promotion of the Lender or borrowings of Lender or related products or that of its associates and affiliates or for enforcement of the obligations of the Borrower and the Borrower hereby confirms that the Borrower shall not hold the Lender liable for the use/sharing of the information as stated above. The Borrower further authorizes the Lender's representative to call/SMS the Borrower towards this loan and other products/services. This consent overrides the registration of Borrower for DNC/NDNC. The Borrower hereby consents to the Lender and/or its partners for obtaining and authenticating my "**Know Your Customer**" (KYC) information with relevant authorities (e.g. NSDL, UIDAI, State Transport Dept. etc), for fulfilling KYC requirements. The Borrower hereby authorizes the Lender to store the personal information required as part of the Agreement which could have been obtained via KYC/e-KYC process of the Borrower in encrypted form for the period of 5 (five) years from the date of termination or expiry of this Agreement.

34) The content of this Agreement has been read out, explained and interpreted to the Borrower, in the vernacular language of the Borrower, Co Borrower and Guarantor and understood by the Borrower, Co-Borrower and the Guarantor at the time of availing the loan and execution of this Agreement, only thereafter the Borrower, Co-Borrower and the Guarantor have put their signature/thumb impression on this Agreement (electronically/ hand). The vernacular translation of terms and conditions of this Agreement shall be available at Lender's website, i.e. www.mahindrafinance.com. In the case of multiple interpretations of any part of this Agreement, English language shall prevail.

IN WITNESS WHEREOF the parties have hereunto set and subscribed to preamble and clauses 1 to 34 on page number 1 to 4 in this Agreement and set their respective hands to this writing on this 29 day of 05 month of 2025

For Mahindra & Mahindra Financial Services Ltd.

Authorised Signatory

27012711 **Authorised Signatory**

(Lender)

For WEVOIS LABS PVT. LTD.

WEVOIS LABS PVT LTD

(Name of the Borrower)

DIRECTOR

(Signature of the Borrower)

ABHISHEK GUPTA

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

(Name of the Co-Borrower)

(Signature of the Co-Borrower)

ABHINAV SHEKHAR VASHTHA

(Name of the Guarantor)

(Signature of the Guarantor)